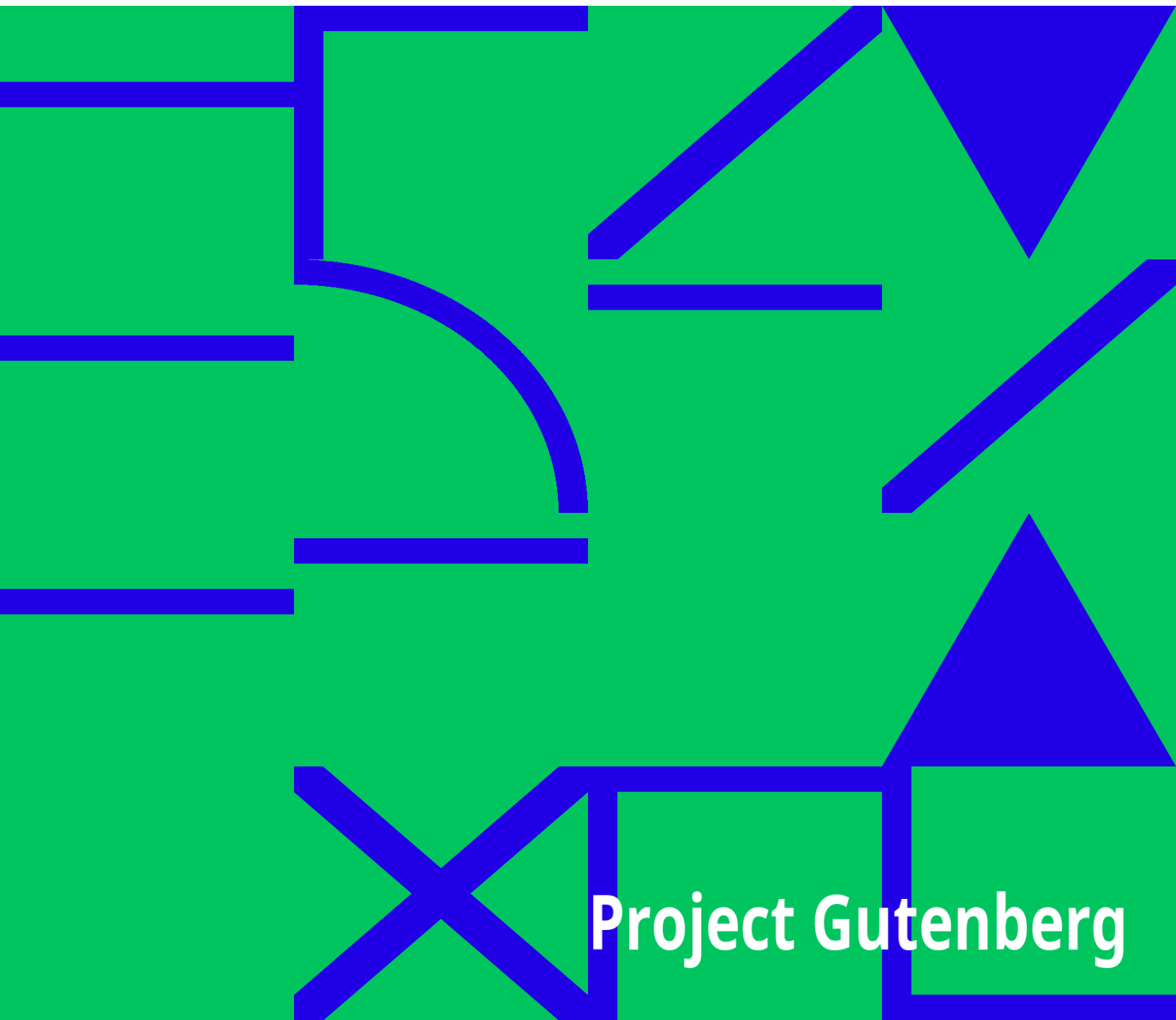


Conscience — Volume 2

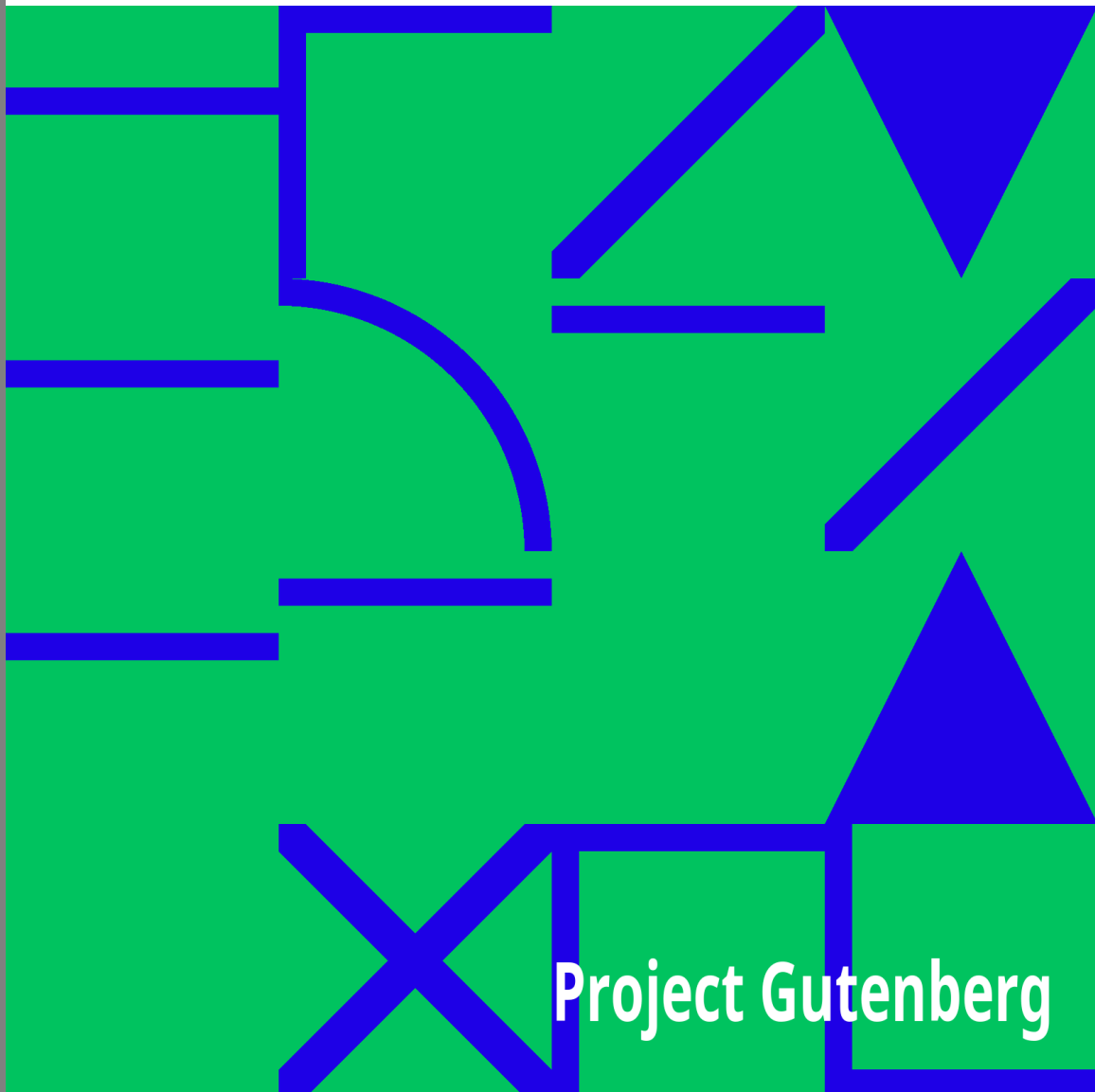
Hector Malot

An abstract geometric pattern composed of various blue shapes and lines on a green background. The shapes include horizontal and vertical lines, a quarter-circle arc, several triangles of different sizes and orientations, and a large 'X' shape formed by two intersecting lines. The pattern is distributed across the lower half of the page.

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Conscience — Volume 2

Hector Malot



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CONSCIENCE

By HECTOR MALOT

BOOK 2.

CHAPTER XI

THE INSTRUMENT OF DEATH

When, after two hours' sleep, Sanie! woke, he did not at first think of this knife; he was tired and dull. Mechanically he walked about his room without paying attention to what he was doing, as if he were in a state of somnambulism, and it astonished him, because he never felt weariness of mind any more than of body, no matter how little he had slept, nor how hard he had worked.

But suddenly, catching a glimpse of the knife that he had placed on the mantel, he received a shock that annihilated his torpor and his fatigue. It

dazzled him like a flash of lightning.

He took it, and, going to the window, he examined it by the pale light of early morning. It was a strong instrument that, in a firm hand, would be a terrible arm; newly sharpened, it had the edge of a razor.

Then the idea, the vision that had come to him two hours before, came back to him, clear and complete at nightfall, that is, at the moment when the concierge was in the second wing of the building, he mounted to Caffie's apartment without being seen, and with this knife he cut his throat. It was as simple as it was easy, and this knife left beside the corpse, and the nature of the wound, would lead the police to look for a butcher, or at least a man who was in the habit of using a knife of this kind.

The evening before, when he had discussed Caffie's death, the how and the when still remained vague and uncertain. But now the day and the means were definitely settled: it should be with this knife, and this evening.

This shook him out of his torpor and made him shudder.

He was angry with himself for this weakness. Did he know or did he not know what he wished? Was he irresolute or cowardly?

Then, going from one idea to another, he thought of an observation that he had made, which appeared to prove that with many subjects there is less firmness in the morning than in the evening. Was this the result of dualism of the nervous centres, and was the human personality double like the brain? Were there hours when the right hemisphere is master of our will, and were there other hours when the left is master? Did one of these hemispheres possess what the other lacked, and is it according to the activity of this or that one, that one has such a character or such a temperament? This would be curious, and would amount to saying that, a

lamb in the morning, one might be a tiger at evening. With him it was a lamb that woke in the morning to be devoured by a tiger during the day. To which hemisphere belonged the one and the other of these personalities?

He was angry with himself for yielding to these reflections; it was a time, truly, to study this psychological question! It was of Caffie that he should think, and of the plan which in an instant flashed through his mind in the street, before he decided to pick up this knife.

Evidently things were neither so simple nor so easy as they at first appeared, and to insure the success of his plan a combination of circumstances was necessary, which might be difficult to bring about.

Would not the concierge see him pass? Would no one go up or down the stairs? Would Caffie be alone? Would he open the door? Might not some one ring after he had entered?

Here was a series of questions that he had not thought of before, but which now presented itself.

He must examine them, weigh them, and not throw himself giddily into an adventure that presented such risks.

He was alone all day, fortunately, and, as in the state of agitation in which he found himself he could not think of work, he gave himself up to this examination. The stakes were worth the trouble—his honor and his life.

As soon as he was dressed he went out, and walked straight before him through the streets that were already filled with people.

It was only when he had left the heart of Paris that he could reflect as he wished, without being disturbed each instant by people in a hurry, for whom

he must make way, or by others who, reading the newspapers, did not look before them, and so jostled against him.

Evidently the risks were more serious than he had imagined; and, as they loomed up before him, he asked himself whether he should go on. To suppress Caffie, yes; to give himself up, no.

"If it is impossible—"

He was not the man to set himself wildly against the impossible: he should have had a dream, a bad dream, and that would be all.

He stopped, and, after a moment of hesitation, turning on his heel, he retraced his steps. Of what use was it to go farther? He had no need to reflect nor to weigh the pro and con; he must give up this plan; decidedly it was too dangerous.

He had gone but a short distance when he asked himself whether these dangers were such as he saw them, and whether he were face to face with a radically demonstrated impossibility.

Without doubt, the concierge might observe him when he passed her lodge, either on going up-stairs or coming down; and, also, she might not observe him. This, in reality, depended much upon himself, and on his method of proceeding.

Every evening this lame old concierge lighted the gas in the two wings of the building, one on the street and one on the court. She began by lighting that on the street, and, with the difficulty that she found in walking, it should take her some time to climb the five stories and to descend. If one watched from the street when, at dusk, she left her lodge with a wax taper in her hand, and mounted the stairs behind her, at a little distance, in such a

way as to be on the landing of the first story when she should reach the second, there would be time, the deed done, to regain the street before she returned to her lodge, after having lighted the gas on the two staircases. It was important to proceed methodically, without hurry, but, also, without loitering.

Was this impossible?

Here, exactly, was the delicate point which he must examine with composure, without permitting himself to be influenced by any other consideration than that which sprang from the deed itself.

He was wrong, then, not to continue his route, and it was better, assuredly, to get out of Paris. In the country, in the fields or woods, he could find the calm that was indispensable to his over-excited brain, in which ideas clashed like the waves of a disturbed sea.

He was at this moment in the middle of the Faubourg Saint Honore; he followed a street that would bring him to the Champs Elysees, a desert at this early hour.

It took him some time to examine all the hypotheses that might present themselves, and he reached the conclusion that what had appeared impossible to him was not so. If he preserved his calmness, and did not lose perception of the passing time, he could very well escape the concierge, which was the main point.

To tell the truth, the danger of the concierge removed, all was not easy. There was the possibility of meeting one of the lodgers on the stairs; there was a chance of not finding Caffie at home, or, at least, not alone; or the bell might ring at the decisive moment. But, as everything depended upon chance, these circumstances could not be decided beforehand. It was a risk.

If one of them happened, he would wait until the next day; it would be one more day of agitation to live through.

But one question that should be decided in advance, because, surely, it presented serious dangers, was how he should justify the coming into his hands of a sum of money which, providentially and in the nick of time, relieved him from the embarrassments against which he struggled.

He had reached the Bois de Boulogne and still continued his walk. In passing a fountain the rippling of the water attracted his attention, and he stopped. Although the weather was damp and cold under the influence of a strong west wind charged with rain, his tongue was dry; he drank two goblets of water, and then pursued his way, indifferent where he went.

Then he built up an arrangement which appeared ingenious to him, when it occurred to him to remember that he had gone to Caffie to borrow three thousand francs. Why would he not lend it to him, if not the first day, at least the second? With this loan he paid his debts, if he were questioned on this point. To prove this loan he need only to sign a receipt which he could place in the safe, and which would be found there. Would not the first thought of those who had signed a paper of this kind be to take it when an occasion presented itself? As he would not seize this occasion to carry off his note, it would be the proof that he had not opened the safe.

Among other advantages, this arrangement did away with robbery; it was only a loan. Later he would return these three thousand francs to Caffie's heirs. So much the worse for him if it were a forced loan.

On returning to Paris he would buy a sheet of stamped paper, and as he had asked the price the previous evening, he knew that he could afford the expense.

When he reached Saint Cloud he entered a tavern and ordered some bread and cheese and wine. But if he drank little, he ate less, his parched throat refusing to swallow bread.

He took up his march in the clayey streets on the slope of Mont Valerian, but he was insensible to the unpleasantness of slipping on the soft soil, and walked hither and thither, his only care being not to get too far away from the Seine, so that he might enter Paris before night.

He was delighted since he had made up his mind to make out and sign a receipt for the money. But on giving it further consideration, he perceived that it was not so ingenious as he had at first supposed. Do not the dealers of stamped paper often number their paper? With this number it would be easy to find the dealer and him who had bought it. And then, was it not likely that a scrupulous business man like Caffie would keep a record of the loans he made, and would not the absence of this one and the note be sufficient to awaken suspicion and to direct it to him?

Decidedly, he only escaped one danger to fall into another.

For a moment he was discouraged, but it did not go so far as weakness. His error had been in imagining that the execution of the idea that had come to him while picking up the knife was as plain as it was easy. But complicated and perilous as it was, it was not impossible.

The question which finally stood before him was, to know whether he possessed the force needed to cope with these dangers, and on this ground hesitation was not possible; to wish to foresee everything was folly; that which he would not have expected, would come to pass.

He returned toward Paris, and by the Pont de Suresnes reentered the Bois de Boulogne. As it was not yet three o'clock, he had plenty of time to reach

the Rue Sainte-Anne before night; but, on the way, a heavy shower forced him to take shelter, and he watched the falling rain, asking himself if this accident, which he had not foreseen, would not upset his plan. A man who had received the force of this shower could not appear in the street before Caffie's door without attracting the attention of the passers-by, and it was important for him that he should not attract the attention of any one.

At length the rain ceased, and at twenty minutes of five he reached his home. There remained fifteen or twenty minutes of daylight, which was more than he needed.

He stuck the point of the knife in a cork, and, after having placed it between the folded leaves of a newspaper, in the inside left-hand pocket of his overcoat, he went out.

CHAPTER XII

THE CRUCIAL MOMENT

When he reached Caffies door the night had scarcely fallen, and the streets were not yet lighted.

The better and the surest plan for him had been to wait in the 'porte-cochere' across the street; from there he could watch the 'concierge', who would not be able to go out without being seen by him. But though the passers were few at this moment, they might have observed him. Next to this 'porte-cochere' was a small 'cafe', whose brilliant lights would cause him to be seen quite plainly. He, therefore, walked on, but soon returned.

All irresolution, all hesitation, had disappeared, and the only point on which he still questioned himself bore upon the state in which he found himself at this moment. He felt himself firm, and his pulse, he was certain, beat regularly. He was as he had imagined he would be; experience confirmed his foresight; his hand would tremble no more than his will.

As he passed before the house he saw the concierge come slowly out of her lodge and close her door carefully, putting the key in her pocket. In her left hand she held something white that he could not see distinctly in the twilight, but it was probably the wax-taper which, doubtless, she had not lighted for fear the wind would blow it out.

This was a favorable circumstance, that gave him one or two minutes more than he had counted on, for she would be obliged to strike a match on the stairs to light her taper; and, in the execution of his plan, two minutes, a single minute even, might be of great importance.

With dragging steps and bent back she disappeared through the vestibule of the stairway. Then Sanial continued his walk like an ordinary passer-by until she had time to reach the first story; then, turning, he returned to the porte-cochere and entered quietly. By the gaslight in the vestibule he saw by his watch, which he held in his hand, that it was fourteen minutes after five o'clock. Then, if his calculation was right, at twenty-four or twenty-five minutes after five he must pass before the lodge, which should still be empty at that moment.

On the staircase above him he heard the heavy step of the concierge; she had lighted the gas on the first story, and continued on her way slowly. With rapid but light steps he mounted behind her, and, on reaching Caffie's door, he rang the bell, taking care not to ring too loudly or too timidly; then he knocked three times, as Caffie had instructed him.

Was Caffie alone?

Up to this time all had gone as he wished; no one in the vestibule, no one on the stairs; fate was in his favor; would it accompany him to the end?

While he waited at the door, asking himself this question, an idea flashed into his mind. He would make a last attempt. If Caffie consented to make the loan he would save himself; if he refused, he condemned himself.

After several seconds, that appeared like hours, his listening ears perceived a sound which announced that Caffie was at home. A scratching of wood on the tiled floor denoted that a chair had been pushed aside;

heavy, dragging steps approached, then the bolt creaked, and the door was opened cautiously.

"Ah! It is you, my dear sir!" Caffie said, in surprise.

Saniel entered briskly and closed the door himself, pressing it firmly.

"Is there anything new?" Caffie asked, as he led the way to his office.

"No," Saniel replied.

"Well, then?" Caffie asked, as he seated himself in an armchair before his desk, on which stood a lighted lamp. "I suppose you have come to hear more about my young friend. This hurry augurs well."

"No, it is not of the young person that I wish to talk to you."

"I am sorry."

On seating himself opposite to Caffie, Saniel had taken out his watch. Two minutes had passed since he left the vestibule; he must hurry. In order to keep himself informed of the passing of time, he retained his watch in his hand.

"Are you in a hurry?"

"Yes; I will come immediately to business. It concerns myself, my position, and I make a last appeal to you. Let us be honest with each other. Undoubtedly you think that, pushed by my distress, and seeing that I shall be lost forever, I shall decide to accept this marriage to save myself."

"Can you suppose such a thing, my dear sir?" Caffie cried.

But Saniel stopped him....

"The calculation is too natural for you not to have made it. Well, I must tell you that it is false. Never will I lend myself to such a bargain. Renounce your project, and let us discuss my demand. I am in absolute want of three thousand francs, and I will pay the interest that you fix upon."

"I have not found a money-lender, my dear sir. I have taken a great deal of trouble, I assure you, but I did not succeed."

"Make an effort yourself."

"Me? My dear sir!"

"I address myself to you."

"But I have no ready money."

"It is a desperate appeal that I make. I understand that your long experience in business makes you insensible to the misery that you see every day—"

"Insensible! Say that it breaks my heart, my dear sir."

"But will you not permit yourself to be touched by the misery of a man who is young, intelligent, courageous, who will drown if a hand is not held out to help him? For you, the assistance that I ask so earnestly is nothing—"

"Three thousand francs! Nothing! Bless me! How you talk!"

"For me, if you refuse me, it is death."

Saniel began to speak with his eyes fixed on the hands of his watch, but presently, carried away by the fever of the situation, he raised them to look at Caffie, and to see the effect that he produced on him. In this movement he made a discovery that destroyed all his calculations.

Caffie's office was a small room with a high window looking into the court; never having been in this office except in the evening, he had not observed that this window had neither shutters nor curtains of muslin or of heavier stuff; there was nothing but the glass. To tell the truth, two heavy curtains of woollen damask hung on either side of the window, but they were not drawn. Talking to Caffie, who was placed between him and this window, Saniel suddenly perceived that on the other side of the court, in the second wing of the building, on the second story, were two lighted windows directly opposite to the office, and that from there any one could see everything that occurred in the office.

How should he execute his plan under the eyes of these people whom he saw coming and going in this room? He would be lost. In any case, it was risking an adventure so hazardous that he would be a fool to attempt it, and he was not that; never had he felt himself so much the master of his mind and nerves.

Also, it was not only to save Caffie's life that he argued, it was to save himself in grasping this loan.

"I can only, to my great regret, repeat to you what I have already said, my dear sir. I have no ready money."

And he held his jaw, groaning, as if this refusal aroused his toothache.

Saniel rose; evidently there was nothing for him to do but to go. It was finished, and instead of being in despair he felt it as a relief.

But, as he was about to leave the room, an idea flashed through his mind.

He looked at his watch, which he had not consulted for some time; it was twenty minutes after five; there yet remained four minutes, five at the most.

"Why do you not draw these curtains?" he said. "I am sure your sufferings are partly caused by the wind that comes in this window."

"Do you think so?"

"I am sure of it; you should be warm about the head, and avoid currents of air."

Passing behind Caffie, he went to the window to draw the curtains, but the cords would not move.

"It is years since they were drawn," Caffie said. "Doubtless the cords are entangled. I will bring the light."

And, taking the lamp, he went to the window, holding it high in order to throw light on the cords.

With a turn of the hand Sanial disentangled the cords, and the curtains slid on the rods, almost covering the window.

"It is true a good deal of air did come in the window," Caffie said. "I thank you, my dear doctor."

All this was done with a feverish rapidity that astonished Caffie.

"Decidedly, you are in a hurry," he said.

"Yes, in a great hurry."

He looked at his watch.

"However, I have still time to give you a consultation if you desire it."

"I would not trouble you—"

"You do not trouble me."

"But—"

"Sit down in your armchair, and show me your mouth."

While Caffie seated himself, Saniel continued in a vibrating voice:

"You see I give good for evil."

"How is that, my dear sir?"

"You refuse me a service that would save me, and I give you a consultation. It is true, it is the last."

"And why the last, my dear sir?"

"Because death is between us."

"Death!"

"Do you not see it?"

"No."

"I see it."

"You must not think of such a thing, my dear sir. One does not die because one cannot pay three thousand francs."

The chair in which Caffie seated himself was an old Voltaire, with an inclined back, and he half reclined in it. As his shirtcollar was too large for him since he had become thin, and his narrow cravat was scarcely tied, he displayed as much throat as jaw.

Saniel, behind the chair, had taken the knife in his right hand, while he pressed the left heavily on Caffie's forehead, and with a powerful stroke, as quick as lightning, he cut the larynx under the glottis, as well as the two carotid arteries, with the jugular veins. From this terrible wound sprang a large jet of blood, which, crossing the room, struck against the door. Cut clean, not a cry could be formed in the windpipe, and in his armchair Caffie shook with convulsions from head to foot.

Leaving his position behind the chair, Saniel, who had thrown the knife on the floor, looked at his watch and counted the ticking of the second-hand in a low voice.

"One, two, three-"

At the end of ninety seconds the convulsions ceased.

It was twenty-three minutes after five. Now it was important that he should hurry and not lose a second.

The blood, after having gushed out, had run down the body and wet the vest pocket in which was the key of the safe. But blood does not produce the same effect upon a doctor as upon those who are not accustomed to its sight and odor, and to its touch. In spite of the lukewarm sea in which it lay, Saniel took the key, and after wiping his hand on one of the tails of Caffie's coat, he placed it in the lock.

Would it turn freely, or was it closed with a combination? The question was poignant. The key turned and the door opened. On a shelf and in a wooden bowl were packages of bank-notes and rolls of gold that he had seen the evening when the bank-clerk came. Roughly, without counting; he thrust them into his pocket, and without closing the safe, he ran to the front

door, taking care not to step in the streams of blood, which, on the sloping tiled floor, ran toward this door. The time was short.

And now was the greatest danger, that of meeting some one behind this door, or on the stairs. He listened, and heard no noise. He went out, and no one was to be seen. Without running, but hastily, he descended the stairs. Should he look in the lodge, or should he turn his head away? He looked, but the concierge was not there.

A second later he was in the street mingling with the passersby, and he drew a long breath.

CHAPTER XIII

DISTRACTION

There was no longer any need to be cautious, to listen, to stretch his nerves, to restrain his heart; he could walk freely and reflect.

His first thought was to endeavor to explain to himself how he felt, and he found that it was an immense relief; something, doubtless, analogous to the returning to life after being in a state of asphyxiation. Physically, he was calm; morally, he felt no remorse. He was right, therefore, in his theory when he told Phillis that in the intelligent man remorse precedes the action, instead of following it.

But where he was mistaken was in imagining that during the act he should maintain his coolness and force, which, in reality, had failed him completely.

Going from one idea to another, tossed by irresolution, he was by no means the strong man that he had believed himself: one to go to the end unmoved, ready to face every attack; master of his nerves as of his will, in full possession of all his powers. On the contrary, he had been the plaything of agitation and weakness. If a serious danger had risen before him, he would not have known on which side to attack it; fear would have paralyzed him, and he would have been lost.

To tell the truth, his hand had been firm, but his head had been bewildered.

There was something humiliating in this, he was obliged to acknowledge; and, what was more serious, it was alarming. Because, although everything had gone as he wished, up to the present time, all was not finished, nor even begun.

If the investigations of the law should reach him, how should he defend himself?

He felt sure that he had not been seen in Caffie's house at the moment when the crime was committed; but does one ever know whether one has been seen or not?

And there was the production of money that he should use to pay his debts, which might become an accusation against which it would be difficult to defend himself. In any case, he must be ready to explain his position. And what might complicate the matter was, that Caffie, a careful man, had probably taken care to write the numbers of his bank-notes in a book, which would be found.

On leaving the Rue Sainte-Anne he took the Rue Neuve-des-Petits-Champs to his home, to leave the bank-notes and to wash off the stains of blood that might have splashed on him and his hands, particularly the right one, which was still red. But suddenly it occurred to him that he might be followed, and it would be folly to show where he lived. He hastened his steps, in order to make any one who might be following him run, and took the streets that were not well lighted, those where there was little chance of any one seeing the stains, if they were visible, on his clothing or boots. He walked in this way for nearly half an hour, turning and returning on his track, and after having crossed the Place Vendôme twice, where he was able

to look behind him, he decided to go home, not knowing whether he should be satisfied to have bewildered all quest, or whether he should not be furious to have yielded to a sort of panic.

As he passed by the lodge without stopping, his concierge called him, and, running out, gave him a letter with unusual eagerness. Saniel, who wished to escape observation, took it hastily, and stuffed it into his pocket.

"It is an important letter," the concierge said. "The servant who brought it told me that it contained money."

It needed this recommendation at such a moment, or Saniel would not have opened it, which he did as soon as he entered his rooms.

"I do not wish, my dear Doctor, to leave Paris for Monaco, where I go to pass two or three months, without sending you our thanks.

"Yours very gratefully,
"C. DUPHOT."

These thanks were represented by two bills of one hundred francs, a payment more than sufficient for the care that Saniel had given some months before to the mistress of this old comrade. Of what use now were these two hundred francs, which a few days sooner would have been so much to him? He threw them on his desk; and then, after having lighted two candles, he inspected his clothing.

The precaution that he had taken to place himself behind the chair was wise. The blood, in squirting in front and on each side, had not reached him; only the hand that held the knife and the shirt-sleeve were splashed, but this was of no consequence. A doctor has the right to have some blood on his

sleeves, and this shirt went to join the one he had worn the previous night when attending the sick woman.

Free from this care, he still had the money in his pockets. He emptied them on his desk and counted all: five rouleaux of gold, of a thousand francs, and three packages of ten thousand francs each, of bank-notes.

How should he get rid of this sum all at once, and, later, how should he justify its production when the moment came, if it came?

The question was complex, and, unfortunately for him, he was hardly in a state to consider it calmly.

For the gold, he had only to burn the papers in which it was rolled. Louis have neither numbers nor particular marks, but bills have. Where should he conceal them while waiting to learn through the newspapers if Caffie had or had not made a note of these numbers?

While burning these papers on which Caffie had written "2,000 francs," he tried to think of a place of concealment.

As he threw a glance around him, asking from things the inspiration that his brain did not furnish, he caught sight of the letter he had just received, and it suggested an idea. Duphot was at Monaco to play. Why should he not go also, and play?

Having neither relatives nor friends from whom he could procure a certain sum, his only resource was to make it at play; and in his desperate position, known to every one, nothing was more natural than this experiment. He had received two hundred francs, which would not save him from his creditors. He would risk them at roulette at Monaco. Whether he lost or won was of little consequence. He would have played that would be

sufficient. He would be seen playing. Who would know whether he lost or won? From Monaco he would pay Jardine by telegraph, out of the five thousand Louis, which would be more than sufficient for that; and, when he returned to Paris, he would free himself from his other creditors with what remained.

The money affair decided—and it seemed to him cleverly settled—did not include the bank-notes, which, spread out before his eyes, disturbed him. What should he do with them? One moment he thought of burning them, but reflection held him back. Would it not be folly to destroy this fortune? In any case, would it not be the work of a narrow mind, of one not fertile in resources?

In trying to think of some safe place to hide the banknotes, one thought continually absorbed him: What was happening in the Rue Sainte-Anne? Had any one discovered the dead man?

He should be there to observe events, instead of timidly shutting himself up in his office.

For several minutes he tried to resist this thought, but it was stronger than his will or his reason. So much was he under its power that he could do nothing.

Willing or unwilling, foolish or not, he must go to the Rue Sainte-Anne.

He washed his hands, changed his shirt, and throwing the notes and gold into a drawer, he went out.

He knew very well that there was a certain danger in leaving these proofs of the crime, which, found in an official search, would overwhelm him, without his being able to defend himself. But he thought that an immediate

search was unlikely to occur, and if he could not make a probable story, it would be better for him not to reason about it. It was a risk that he ran, but how much he had on his side!

He hastened along the Rue Neuve-des-Petits-Champs, but on approaching the Rue Sainte-Anne he slackened his steps, looking about him and listening. Nothing unusual struck him. Even when he turned into the Rue Sainte-Anne he found it bore its ordinary aspect. A few passers-by, not curious; no groups on the sidewalk; no shopkeepers at their doors. Nothing was different from usual.

Apparently, nothing had yet been discovered. Then he stopped, judging it useless to go farther. Already he had passed too much time before Caffie's door, and when one was of his build, above the medium height, with a physiognomy and appearance unlike others, one should avoid attracting attention.

For several minutes he walked up and down slowly, from the Rue Neuve-des-Petits-Champs to the Rue du Hasard; from there he could see Caffie's house, and yet be so far away that no one would suspect him of watching it.

But this promenade, which was quite natural, and which he would have continued for an hour in ordinary circumstances, without thinking anything about it, soon alarmed him. It seemed as if people looked at him, and two persons stopping to talk made him wonder if they spoke of him. Why did they not continue their way? Why, from time to time, did they turn their heads toward him?

He left the place, and neither wishing nor being able to decide to go far away from "the house," he concluded to go to a small cafe which was close by.

On entering, he seated himself at a table near the door that appeared to be an excellent observatory, from where he could easily survey the street. A waiter asked him what he would have, and he ordered coffee.

He gave this order mechanically, without thinking what he was saying, and not till afterward did he wonder if it were natural to take coffee at this hour. The men seated at the other tables drank appetizers or beer. Had he not made a blunder?

But everything seemed a blunder, as everything seemed dangerous. Could he not regain his composure and his reason? He drank his coffee slowly; then he asked for a newspaper. The street was quiet, and people left the cafe one by one.

Behind his newspaper he reflected. It was his feverish curiosity that made him admit that Caffie's death would be discovered during the evening. In reality, it might easily remain undiscovered until the next day.

But he could not stay in the cafe until the next day, nor even until midnight. Perhaps he had remained there too long already.

He did not wish to go yet, so he ordered writing materials, and paid the waiter, in case he might wish to go hastily—if anything occurred.

What should he write? He wished to test himself, and found that he was able to write clearly, and to select the proper words; but when he came to read it over, his will failed him.

Time passed. Suddenly there was a movement under the porte-cochere of "the house," and a man ran through the street. Two or three persons stopped in a group.

Without hurrying too much, Saniel went out, and in a strong voice asked what had happened.

"An agent of business has been assassinated in his office. Word has been sent to the police bureau in the Rue du Hasard."

CHAPTER XIV

THE EXAMINATION

Saniel was there to observe, without having decided what he should do. Instantly, with the decision that had "failed him so often during his vigil," he resolved to go to Caffie's. Was he not a doctor, and the physician of the dead-man? What could be more natural?

"A money-lender!" he exclaimed. "Is it Monsieur Caffie?"

"Exactly."

"But I am his doctor."

"A doctor! Here is a doctor!" cried several voices.

The crowd parted, and Saniel passed under the porte-cochere, where the concierge, half fainting, was seated on a chair, surrounded by all the maids of the house and several neighbors, to whom she related the news.

By using his elbows he was able to approach her.

"Who has said Monsieur Caffie is dead?" he asked with authority.

"No one has said he is dead; at least, I have not."

"Well, then?"

"There is a stain of blood that has run from his office down to the landing; and as he is at home, since the light of his lamp is seen in the court, and he never leaves it burning when he goes to dinner, something must have happened. And why are his curtains drawn? He always leaves them open."

At this moment two policemen appeared, preceded by a locksmith armed with a bunch of keys, and a little man with a shrewd, sharp appearance, wearing spectacles, and a hat from under which fell blond curls. The commissioner of police probably.

"On which story?" he asked the concierge.

"On the first."

"Come with us."

He started to go upstairs, accompanied by the concierge, the locksmith, and one of the policemen; Sanial wished to follow them, but the other policeman barred the way.

"Pardon, Monsieur Commissioner," Sanial said.

"What do you wish, sir?"

"I am Monsieur Caffie's physician."

"Your name?"

"Doctor Sanial."

"Let the doctor pass," the commissioner said, "but alone. Make every one go out, and shut the porte-cochere."

On reaching the landing the commissioner stopped to look at the brown stain which, running under the door, spread over the tiling, as Caffie never had had a mat.

"It is certainly a stain of blood," Sanial said, who stopped to examine it and dipped his finger in it.

"Open the door," the commissioner said to the locksmith.

The latter examined the lock, looked among his keys, selected one, and unlocked the door.

"Let no one enter," the commissioner said. "Doctor, have the goodness to follow me."

And, going ahead, he entered the first office, that of the clerk, followed by Sanial. Two little rills of blood, already thickened, starting from Caffie's chair, and running across the tiled floor, which sloped a little toward the side of the staircase, joined in the stain which caused the discovery of the crime. The commissioner and Sanial took care not to step in it.

"The unfortunate man has had his throat cut," Sanial said. "Death must have occurred two or three hours ago. There is nothing to do."

"Speak for yourself, doctor."

And, stooping, he picked up the knife.

"Is it not a butcher's knife?" asked Sanial, who could only use this word.

"It looks like it."

He had raised Caffie's head and examined the wound.

"You see," he said, "that the victim has been butchered. The stroke was from left to right, by a firm hand which must be accustomed to handle this knife. But it is not only a strong and practised hand that has done this deed; it was guided by an intelligence that knew how to proceed to insure a quick, almost instantaneous death, and at the same time a silent one."

"You think it was done by a butcher?"

"By a professional killer; the larynx has been cut above the glottis, and with the same stroke the two carotid arteries, with the jugular veins. As the assassin had to raise the head, the victim was not able to cry out; considerable blood has flowed, and death must have ensued in one or two minutes."

"The scene appears to me very well reconstructed."

"The blood should have burst out in this direction," Saniel continued, pointing to the door. "But as this door was open, nothing is to be seen."

While Saniel spoke, the commissioner threw a glance about the room—the glance of the police, which takes in everything.

"The safe is open," he said. "The affair becomes clear; the assassination was followed by theft."

There was a door opposite to the entrance, which the commissioner opened; it was that of Caffie's bedroom.

"I will give you a man to help you carry the body into this room, where you can continue your examination more easily, while I will continue my investigations in this office."

Saniel would have liked to remain in the office to assist at these investigations, but it was impossible to raise an objection. The chair was rolled into the bedroom, where two candles had been lighted on the mantel, and when the body was laid on the bed, the commissioner returned to the office.

Saniel made his examination last as long a time as possible, to the end that he need not leave the house; but he could not prolong it beyond certain limits. When they were reached, he returned to the clerk's office, where the commissioner had installed himself, and was hearing the concierge's deposition.

"And so," he said, "from five to seven o'clock no one asked for M. Caffie?"

"No one. But I left my lodge at a quarter past five to light the gas on the stairs; that took me twenty minutes, because I am stiff in my joints, and during this time some one might have gone up and down the stairs without my seeing them."

"Well," the commissioner said, turning to Saniel, "have you found any distinguishing feature?"

"No; there is only the wound on the neck."

"Will you draw up your medico-legal report while I continue my inquest?"

"Willingly."

And, without waiting, he seated himself at the clerk's desk, facing the commissioner's secretary, who had arrived a few minutes previous.

"I am going to make you take the oath," the commissioner said.

After this formality Saniel began his report:

"We, the undersigned, Victor Saniel, doctor of medicine of the Paris Faculty, residing in Paris in the Rue Louis-le-Grand, after having taken an oath to fulfil in all honor and conscience the mission confided to us—"

All the time that he was writing he paid attention to everything that was said, and did not lose one word of the concierge's deposition.

"I am certain," she said, "that from half-past five until now no one has gone up or down the stairs but the people who live in the house."

"But before half-past five?"

"I have told you that from a quarter past five until half-past I was not in my lodge."

"And before a quarter past five o'clock?"

"Several persons passed whom I did not know."

"Did any one among them ask you for Monsieur Caffie?"

"No; that is to say, yes. There was one who asked me if Monsieur Caffie was at home; but I know him well; that is why I answered No."

"And who is he?"

"One of Monsieur Caffie's old clerks."

"His name?"

"Monsieur Florentin—Monsieur Florentin Cormier."

Saniel's hand was arrested at this name, but he did not raise his head.

"At what hour did he come?" asked the commissioner.

"Near three o'clock, before rather than after."

"Did you see him go away?"

"Certainly, he spoke to me."

"What time was it?"

"Half-past three."

"Do you think that death could have occurred at this moment?" the commissioner asked, turning to Saniel.

"No; I think it must have been between five and six o'clock."

"It is wrong for the commissioner to suspect Monsieur Florentin," cried the concierge. "He is a good young man, incapable of harming a fly. And then, there is a good reason why death could not have taken place between three o'clock and half-past; it is that Monsieur Caffie's lamp was lighted, and you know the poor gentleman was not a man to light his lamp in broad daylight, looking as he was—"

She stopped abruptly, striking her forehead with her hand.

"That is what I remember, and you will see that Monsieur Florentin has nothing to do with this affair. As I went upstairs at a quarter past five to light my gas, some one came behind me and rang Monsieur Caffie's bell,

and rapped three or four times at equal distances, which is the signal to open the door."

Again Saniel's pen stopped, and he was obliged to lean his hand on the table to prevent its trembling.

"Who was it?"

"Ah! That I do not know," she answered. "I did not see him, but I heard him, the step of a man. It was this rascal who killed him, you may be sure."

This seemed likely.

"He went out while I was on the stairs; he knew the customs of the house."

Saniel continued his report.

After having questioned and cross-questioned the concierge without being able to make her say more, the commissioner dismissed her, and leaving Saniel at his work, he passed into Caffie's office, where he remained a long time.

When he returned he brought a small note-book that he consulted. Without doubt it was the book of Caffie's safe, simple and primitive, like everything relating to the old man's habits, governed by the narrowest economy in his expenses, as well as in his work.

"According to this note-book," the commissioner said to his secretary, "thirty-five or thirty-six thousand francs must have been taken from the safe; but there are left deeds and papers for a large sum."

Saniel, who had finished his report, did not take his eyes from the note-book, and what he could see reassured him. Evidently these accounts were reduced to a minimum: a date, a name, a sum, and after this name a capital P, which, without doubt, meant "paid." It was hardly possible that with such a system Caffie had ever taken the trouble to enter the number of the bills that had passed through his hands; in any case, if he did, it was not in this note-book. Would another one be found?

"My report is finished," he said. "Here it is."

"Since you are here, perhaps you can give me some information concerning the habits of the victim and the persons he received."

"Not at all. I have known him but a short time, and he was my patient, as I was his client, by accident. He undertook an affair for me, and I gave him advice; he was in the last stage of diabetes. The assassin hastened his death only a short time-a few days."

"That is nothing; he hastened it."

"Oh, certainly! Otherwise, if he is skilful in cutting throats, perhaps he is less so in making a diagnosis of their maladies."

"That is probable," responded the commissioner, smiling. "You think it was a butcher?"

"It seems probable."

"The knife?"

"He might have stolen it or found it."

"But the mode of operating?"

"That, it seems to me, is the point from where we should start."

Saniel could remain no longer, and he rose to leave.

"You have my address," he said; "but I must tell you, if you want me, I leave to-morrow for Nice. But I shall be absent only just long enough to go and return."

"If we want you, it will not be for several days. We shall not get on very rapidly, we have so little to guide us."

CHAPTER XV

A NEW PLAN

Saniel walked home briskly. If, more than once during this interview, his emotion was poignant, he could not but be satisfied with the result. The concierge had not seen him, that was henceforth unquestionable; the hypothesis of the butcher's knife was put in a way to make his fortune; and it seemed probable that Caffie had not kept the numbers of the bank- notes.

But if they had been noted, and should the notebook containing them be discovered later, the danger was not immediate. While writing his report and listening to the concierge's deposition, by a sort of inspiration he thought of a way of disposing of them. He would divide them into small packages, place them in envelopes, and address them with different initials to the poste restante, where they would remain until he could call for them without compromising himself.

In the deposition of the concierge, in the track indicated by the knife, in the poste restante, he had just motives for satisfaction, that made him breathe freely. Decidedly, fate seemed to be with him, and he should have been able to say that everything was going well, if he had not committed the imprudence of entering the cafe. Why had he gone there and remained long enough to attract attention? What might not be the consequences of this stupidity?

As soon as he reached home and his door was closed, he carried out his intentions regarding the bank-notes, dividing them into ten packages. His first thought was to place them in the nearest letterbox, but reflection showed him that this would be unwise, and he decided to mail each one in a different quarter of the city.

After his long walk of the morning, and the emotions of the evening, he felt a fatigue that he had never known before, but he comprehended that he was not at liberty to yield to this weariness. A new situation was made for him, and henceforth he no longer belonged to himself. For the rest of his life he would be the prisoner of his crime. And it was this crime which, from this evening, would command, and he must obey.

Why had he not foreseen this situation when, weighing the pro and con like an intelligent man who can scrutinize the future under all its phases, he had examined what must happen? But surprising as it was, the discovery was no less certain, and the sad and troublesome proof was that, however intelligent one may be, one can always learn by experience.

What was there yet to learn? He confessed that he found himself face to face with the unknown, and all that he wished was, that this lesson he had learned from experience might be the hardest. It would be folly to imagine that it was the last. Time would show.

When he returned home, after posting his letters, it was long past one o'clock. He went to bed immediately, and slept heavily, without waking or dreaming.

It was broad daylight when he opened his eyes the next morning. Surprised at having slept so late, he jumped up and looked at his watch, which said eight o'clock. But as he should not leave until a quarter past eleven, he had plenty of time.

How should he employ it?

It was the first time in years that he had asked himself such a question; he, who each day always found that he needed three or four hours more to carry out his programme.

He dressed slowly, and then thought of writing to Phillis to tell her of his trip to Nice. But suddenly he changed his mind, and decided to go to see her.

The preceding year he attended Madame Cormier, who had been stricken with paralysis, and he could occasionally present himself at her house without appearing to call upon Phillis. It was easy to say that he was passing by, and wished to learn news of the patient whom he had cured.

At nine o'clock he knocked at her door.

"Enter," a man's voice said.

He was surprised, for in his visits to Madame Cormier he had never seen a man there. He crossed the hall and knocked at the dining-room door. This time it was Phillis who bid him come in.

He opened the door and saw Phillis, in a gray blouse, seated before a large table placed by the window. She was painting some cards.

Hearing steps, she turned her head and instantly rose, but she restrained the cry-the name that was on her lips.

"Mamma," she said, "here is Doctor Sanieel."

Madame Cormier entered, walking with difficulty; for, if Sanieel had put her on her feet, he had not given her the suppleness or the grace of youth.

After a few words, Saniel explained that, having to pay a visit to the Batignolles, he would not come so near his former patient without calling to see her.

While Madame Cormier told at great length how she felt, and also how she did not feel, Phillis looked at Saniel, uneasy to see his face so convulsed. Surely, something very serious had happened; his visit said this. But what? Her anguish was so much the greater, because he certainly avoided looking at her. Why? She had done nothing, and could find nothing with which to reproach herself.

At this moment the door opened, and a man still young, tall, with a curled beard, entered the room.

"My son," Madame Cormier said.

"My brother Florentin, of whom we have spoken so often," Phillis said.

Florentin! Was he then becoming imbecile, that he had not thought the voice of the man who bid him enter was that of Phillis's brother? Was he so profoundly overwhelmed that such a simple reasoning was impossible to him? Decidedly, it was important for him to go away as quickly as possible; the journey would calm his nerves.

"They wrote to me," Florentin said, "and since my return they have told me how good you were to my mother. Permit me to thank you from a touched and grateful heart. I hope that before long this gratitude will be something more than a vain word."

"Do not let us speak of that," Saniel said, looking at Phillis with a frankness and an open countenance that reassured her on a certain point. "It

is I who am obliged to Madame Cormier. If the word were not barbarous, I should say that her illness has been a good thing for me."

To turn the conversation, and because he wished to speak to Phillis alone, he approached her table and talked with her about her work.

Saniel then gave Madame Cormier some advice, and rose to go.

Phillis followed him, and Florentin was about to accompany them, but Phillis stopped him.

"I wish to ask Doctor Saniel a question," she said.

When they were on the landing she closed the door.

"What is the matter?" she asked in a hurried and trembling voice.

"I wished to tell you that I start for Monaco at eleven o'clock."

"You are going away?"

"I have received two hundred francs from a patient, and I am going to risk them at play. Two hundred francs will not pay Jardine or the others, but with them I may win several thousands of francs."

"Oh! Poor dear! How desperate you must be—you, such as you are, to have such an idea!"

"Am I wrong?"

"Never wrong to my eyes, to my heart, to my love. O my beloved, may fortune be with you!"

"Give me your hand."

She looked around, listening. There was no one, no noise.

Then, drawing him toward her, she put her lips on his:

"All yours, yours!"

"I will return Tuesday."

"Tuesday, at five o'clock, I shall be there."

CHAPTER XVI

THE SMILES OF FORTUNE

No one knew so little about play as Saniel. He knew that people played at Monaco, and that was all. He bought his ticket for Monaco, and left the train at that place.

On leaving the station he looked all about him, to see what kind of a place it was. Seeing nothing that looked like a gambling-house as he understood it, that is, like the Casino de Royal, the only establishment of the kind that he had ever seen, he asked a passer-by:

"Where is the gambling-house?"

"There is none at Monaco."

"I thought there was."

"There is one at Monte Carlo."

"Is it far?"

"Over yonder."

With his hand the man indicated, on the slope of the mountain, a green spot where, in the midst of the foliage, were seen roofs and facades of

imposing buildings.

Saniel thanked him and followed his directions, while the man, calling another, related the question that had been addressed to him, and both laughed, shrugging their shoulders. Could any one be so stupid as these Parisians! Another one who was going to be plucked, and who came from Paris expressly for that! Was he not funny, with his big legs and arms?

Without troubling himself about the laughter that he heard behind him, Saniel continued his way. In spite of his night on the train, he felt no fatigue; on the contrary, his mind and body were active. The journey had calmed the agitation of his nerves, and it was with perfect tranquillity he looked back upon all that had passed before his departure. In the state of satisfaction that was his now, he had nothing more to fear from stupidity or acts of folly; and, since he had recovered his will, all would go well. No more backward glances, and fewer still before. The present only should absorb him.

The present, at this moment, was play. What did they play? He knew roulette, but he knew not if the game was roulette. He would do as others did. If he were ridiculed, it was of little importance; and in reality he should desire to be ridiculed. People remember with pleasure those at whom they have laughed, and he had come here to find some one who would remember him.

When he entered the salon where the playing was going on, he observed that a religious silence reigned there. Round a large table covered with a carpet of green cloth, which was divided by lines and figures, some men were seated on high chairs, making them appear like officers; others, on lower chairs, or simply standing about the table, pushed or picked up the louis and bank bills on the green cloth, and a strong voice repeated, in a monotonous tone:

"Messieurs, faites votre jeu! Le jeu est fait! Rien ne va plus!"

Then a little ivory ball was thrown into a cylinder, where it rolled with a metallic noise. Although he had never seen roulette, it required no effort to divine that this was the game.

And, before putting several louis on the table, he looked about him to see how it was played. But after the tenth time he understood as little as at first. With the rakes the croupiers collected the stakes of certain players; with these same rakes they doubled, separated, or even paid, in proportions of which he took no account, certain others, and that was all.

But it mattered little. Having seen how the money was placed on the table, that was sufficient.

He had five louis in his hand when the croupier said:

"Messieurs, faites votre jeu."

He placed them on the number thirty-two, or, at least, he believed that he placed them on this number.

"Rien ne va plus!" The ball rolled in the cylinder.

"Thirty-one!" cried the croupier, adding some other words that Sanial did not understand. So little did he understand roulette that he thought he had lost. He had placed his stake on the thirty-two, and it was the thirty-one that had appeared; the bank had won. He was surprised to see the croupier push a heap of gold toward him, which amounted to nearly a hundred louis, and accompany this movement with a glance which, without any doubt, meant to say:

"For you, sir."

What should he do? Since he had lost, he could not take this, money that was given to him by mistake.

In placing his stake on the table, he had leaned over the shoulder of a gentleman whose hair and beard were of a most extraordinary black, who, without playing, pricked a card with a pin. This gentleman turned toward him, and with an amiable smile, and in a most gracious tone said:

"It is yours, sir."

Decidedly, he was mistaken in thinking he had lost; and he must take this heap of louis, which he did, but neglecting to take, also, his first stake.

The game continued.

"Thirty-two," called the croupier.

Saniel perceived that his five louis had remained on the thirty-two; he believed that he had won, since this number was called, and his ignorance was such that he did not know that in roulette a number is paid thirty-six times the stake: the croupier would, therefore, push toward him one hundred and eighty Louis.

But, to his great surprise, he pushed him no more money than at first. This was incomprehensible. When he lost, money was paid to him, and when he won, he was paid only half his due.

His face betrayed his astonishment so plainly that he saw a mocking smile in the eyes of the black-haired man, who had again turned toward him.

As he played merely for the sake of playing, and not to win or lose, he pocketed all that was pushed toward him and his stake.

"Since you are not going to play any more," said the amiable gentleman, leaving his chair, "will you permit me to say a word to you?"

Saniel bowed, and together they left the table. When they were far enough away to converse without disturbing the players, the gentleman bowed ceremoniously:

"Permit me to present myself-Prince Mazzazoli."

Saniel replied by giving his name and position.

"Well, doctor," the prince said with a strong Italian accent, "you will pardon me, I hope, for making the simple observation that my age authorizes: you play like a child."

"Like an ignoramus," Saniel replied, without being angry. For, however unusual this observation might be, he had already decided that it might be a good thing in the future to call upon the testimony of a prince.

"I am sure you are still asking yourself why you received eighteen times the sum of your stake at the first play, and why you did not receive thirty-six times the sum at the second."

"That is true."

"Well, I will tell you." And he proceeded to explain.

Saniel did not wait for the conclusion to learn the fact that this very-much-dyed Italian prince was a liar.

"I do not intend to play again," he said.

"With your luck that would be more than a fault."

"I wanted a certain sum; I have won it, and that satisfies me."

"You will not be so foolish as to refuse the hand that Fortune holds out?"

"Are you sure she holds it out to me?" Saniel asked, finding that it was the prince.

"Do not doubt it. I will show you—"

"Thank you; but I never break a resolution."

In another moment Saniel would have turned his back on the man, but he was a witness whom it would be well to treat with caution.

"I have nothing more to do here," he said, politely. "Permit me to retire, after having thanked you for your offer, whose kindness I appreciate."

"Well," cried the prince, "since you will not risk your fate, let me do it for you. This money may be a fetich. Take off five louis, only five louis, and confide them to me. I will play them according to my combinations, which are certain, and this evening I will give you your part of the proceeds. Where are you staying? I live at the Villa des Palmes."

"Nowhere; I have just arrived."

"Then let us meet here this evening at ten o'clock, in this room, and we will liquidate our association."

His first impulse was to refuse. Of what use to give alms to this old monkey? But, after all, it did not cost much to pay his witness five louis, and he gave them to him.

"A thousand thanks! This evening, at ten o'clock."

As Saniel left the room he found himself face to face with his old comrade Duphot, who was accompanied by a woman, the same whom he had cured.

"What! you here?" both the lover and his mistress exclaimed.

Saniel related why he was at Monaco, and what he had done since his arrival.

"With my money! Ah! She is very well," Duphot cried.

"And you will play no more?" the woman asked.

"I have all I want."

"Then you will play for me."

He wished to decline, but they drew him to the roulette table, and each put a louis in his hand.

"Play."

"How?"

"As inspiration counsels you. You have the luck."

But his luck had died. The two louis were lost.

They gave him two others, which won eight.

"You see, dear friend."

He went on, with varying luck, winning and losing.

At the end of a quarter of an hour they permitted him to go.

"And what are you going to do now?" Duphot asked.

"To send what I owe to my creditors by telegraph."

"Do you know where the telegraph is?"

"No."

"I will go with you."

This was a second witness that Sanieel was too wise to shake off.

When he had sent his telegram to Jardine, he had nothing more to do at Monte Carlo, and as he could not leave before eleven o'clock in the evening, he was idle, not knowing how to employ his time. So he bought a Nice newspaper and seated himself in the garden, under a gaslight, facing the dark and tranquil sea. Perhaps he could find in it some telegraph despatch which would tell him what had occurred in the Rue Sainte-Anne since his departure.

At the end of the paper, under "Latest News," he read:

"The crime of the Rue Sainte-Anne seems to take a new turn; the investigations made with more care have led to the discovery of a trousers' button, to which is attached a piece of cloth. It shows, therefore, that before the crime there was a struggle between the victim and the assassin. As this button has certain letters and marks, it is a valuable clew for the police."

This proof of a struggle between the victim and the assassin made Sanieel smile. Who could tell how long this button had been there?

Suddenly he left his seat, and entering a copse he examined his clothing. Was it he who had lost it?

But soon he was ashamed of this unconscious movement. The button which the police were so proud to discover, did not belong to him. This new track on which they were about to enter did not lead to him.

CHAPTER XVII

PHILLIS'S FEARS

On Tuesday, a little before five o'clock, as she had promised, Phillis rang at Sanie's door, and he left his laboratory where he was at work, to let her in.

She threw herself on his neck.

"Well?" she asked, in a trembling voice.

He told her how he had played and won, without stating the exact sum; also the propositions of the Prince Mazzazoli, the meeting with Duphot, and the telegram to Jardine.

"Oh! What happiness!" she said, pressing him in her arms. "You are free!"

"No more creditors! I am my own master. You see it was a good inspiration. Justice willed it."

Then interrupting him:

"Apropos of justice, you did not speak of Caffie the morning of your departure."

"I was so preoccupied I had no time to think of Caffie."

"Is it not curious, the coincidence of his death with the condemnation that we pronounced against him? Does it not prove exactly the justice of things?"

"If you choose."

"As the money you won at Monaco proves to you that what is just will happen. Caffie is punished for all his rascalities and crimes, and you are rewarded for your sufferings."

"Would it not have been just if Caffie had been punished sooner, and if I had suffered less?"

She remained silent.

"You see," he said smiling, "that your philosophy is weak."

"It is not of my philosophy that I am thinking, but of Caffie and ourselves."

"And how can Caffie be associated with you or yours?"

"He is, or rather he may be, if this justice in which I believe in spite of your joking permits him to be."

"You are talking in enigmas."

"What have you heard about Caffie since you went away?"

"Nothing, or almost nothing."

"You know it is thought that the crime was committed by a butcher."

"The commissioner picked up the knife before me, and it is certainly a butcher's knife. And more than that, the stroke that cut Caffie's throat was given by a hand accustomed to butchery. I have indicated this in my report."

"Since then, more careful investigations have discovered a trousers' button—"

"Which might have been torn off in a struggle between Caffie and his assassin, I read in a newspaper. But as for me, I do not believe in this struggle. Caffie's position in his chair, where he was assaulted and where he died, indicates that the old scamp was surprised. Otherwise, if he had not been, if he had struggled, he could have cried out, and, without doubt, he would have been heard."

"If you knew how happy I am to hear you say that!" she cried.

"Happy! What difference can it make to you?" and he looked at her in surprise. "Of what importance is it to you whether Caffie was killed with or without a struggle? You condemned him; he is dead. That should satisfy you."

"I was very wrong to pronounce this condemnation, which I did without attaching any importance to it."

"Do you think that hastened its execution?"

"I am not so foolish as that, but I should be better pleased if I had not condemned him."

"Do you regret it?"

"I regret that he is dead."

"Decidedly, the enigma continues; but you know I do not understand it, and, if you wish, we will stop there. We have something better to do than to talk of Caffie."

"On the contrary, let me talk to you of him, because we want your advice."

Again he looked at her, trying to read her face and to divine why she insisted on speaking of Caffie, when he had just expressed a wish not to speak of him. What was there beneath this insistence?

"I will listen," he said; "and, since you wish to ask my advice on the subject, you must tell me immediately what you mean."

"You are right; and I should have told you before, but embarrassment and shame restrained me. And I reproach myself, for with you I should feel neither embarrassment nor reproach."

"Assuredly."

"But before everything else, I must tell you—you must know—that my brother Florentin is a good and honest boy; you must believe it, you must be convinced of it."

"I am, since you tell me so. Besides, he produced the best impression on me during the short time I saw him the other day at your house."

"Would not one see immediately that he has a good nature?"

"Certainly."

"Frank and upright; weak, it is true, and a little effeminate also, that is, lacking energy, letting himself be carried away by goodness and tenderness. This weakness made him commit a fault before his departure for America. I have kept it from you until this moment, but you must know it now. Loving a woman who controlled him and made him do what she wished, he let himself be persuaded to take a sum of forty-five francs that she demanded, that she insisted on having that evening, hoping to be able to replace it three days later, without his employer discovering it."

"His employer was Caffie?"

"No; it was three months after he left Caffie, and he was with another man of business of whom I have never spoken to you, and now you understand why. The money he expected failed him; his fault was discovered, and his employer lodged a complaint against him."

"We made him withdraw his complaint, never mind how, and Florentin went to America to seek his fortune. And since you have seen him, you admit that he might be capable of the fault that he committed, without being capable of becoming an assassin."

He was about to reply, but she closed his lips with a quick gesture.

"You will see why I speak of this, and you will understand why I do not drop the subject of Caffie, and of this button, on which the police count to find the criminal. This button belonged to Florentin."

"To your brother?"

"Yes, to Florentin, who, the day of the crime, had been to see Caffie."

"That is true; the concierge told the commissioner of police that he called about three o'clock."

Phillis gave a cry of despair.

"They know he was there? Then it is more serious than we imagined or believed."

"In answering a question as to whom Caffie had received that day, the concierge named your brother. But as this visit took place between three and half-past, and the crime was certainly committed between five and half-past, no one can accuse your brother of being the assassin, since he left before Caffie lighted his lamp. As this lamp could not light itself, it proves that he could not have butchered a man who was living an hour after the concierge saw your brother and talked with him."

"What you say is a great relief; if you could know how alarmed we have been!"

"You were too hasty to alarm yourself."

"Too hasty? But when Florentin read the account to us and came to the button, he exclaimed, 'This button is mine!' and we experienced a shock that made us lose our heads. We saw the police falling on us, questioning Florentin, reproaching him with the past, which would be retailed in all the newspapers, and you must understand how we felt."

"But cannot your brother explain how he lost this button at Caffie's?"

"Certainly, and in the most natural way. He went to see Caffie, to ask him for a letter of recommendation, saying that he had been his clerk for several years. Caffie gave it to him, and then, in the course of conversation, Caffie spoke of a bundle of papers that he could not find. Florentin had had charge of these papers, and had placed them on a high shelf in the closet. As Caffie could not find them, and wanted them, Florentin brought a small ladder,

and, mounting it, found them. He was about to descend the ladder, when he made a misstep, and in trying to save himself, one of the buttons of his trousers was pulled off."

"And he did not pick it up?"

"He did not even notice it at first. But later, in the street, seeing one leg of his trousers longer than the other, he thought of the ladder, and found that he had lost a button. He would not return to Caffie's to look for it, of course."

"Of course."

"How could he foresee that Caffie would be assassinated? That the crime would be so skilfully planned and executed that the criminal would escape? That two days later the police would find a button on which they would build a story that would make him the criminal? Florentin had not thought of all that."

"That is understood."

"The same evening he replaced the button by another, and it was only on reading the newspaper that he felt there might be something serious in this apparently insignificant fact. And we shared his alarm."

"Have you spoken to any one of this button?"

"Certainly not; we know too much. I tell you of it because I tell you everything; and if we are menaced, we have no help to expect, except from you. Florentin is a good boy, but he is weak and foolish. Mamma is like him in more than one respect, and as for me, although I am more resistant, I confess that, in the face of the law and the police, I should easily lose my head, like children who begin to scream when they are left in the dark. Is

not the law, when you know nothing of it, a night of trouble, full of horrors, and peopled with phantoms?"

"I do not believe there is the danger that you imagined in the first moment of alarm."

"It was natural."

"Very natural, I admit, but reflection must show how little foundation there is for it. The button has not the name of the tailor who furnished it?"

"No, but it has the initials and the mark of the manufacturer; an A and a P, with a crown and a cock."

"Well! Among two or three thousand tailors in Paris, how is it possible for the police to find those who use these buttons? And when the tailors are found, how could they designate the owner of this button, this one exactly, and not another? It is looking for a needle in a bundle of hay. Where did your brother have these trousers made? Did he bring them from America?"

"The poor boy brought nothing from America but wretchedly shabby clothes, and we had to clothe him from head to foot. We were obliged to economize, and a little tailor in the Avenue de Clichy, called Valerius, made this suit."

"It seems to me scarcely probable that the police will find this little tailor. But if they do, would he recognize the button as coming from his stock? And, if they get as far as your brother, they must prove that there was a struggle; that the button was torn off in this struggle; that your brother was in the Rue Sainte-Anne between five and six o'clock; in which case, without doubt, he will find it easy to prove where he was at that moment."

"He was with us—with mamma."

"You see, then, you need not feel alarmed."

CHAPTER XVIII

A GRAVE DISCUSSION

Phillis hurried to return to the Rue des Moines, to share with her mother and brother the confidence that Sanial caused her to feel.

She pulled the bell with a trembling hand, for the time was past when in this quiet house, where all the lodgers knew each other, the key was left in the door, and one had only to knock before entering. Since the newspapers had spoken of the button, all was changed; the feeling of liberty and security had disappeared; the door was always closed, and when the bell rang they looked at each other in fear and with trembling.

When Florentin opened the door, the table was set for dinner.

"I was afraid something had happened to you," Madame Cormier said.

"I was detained."

She took off her hat and cloak hastily.

"You have learned nothing?" the mother asked, bringing in the soup.

"No."

"They spoke to you of nothing?" Florentin continued in a low voice.

"They spoke to me of nothing else; or I heard only that when I was not addressed directly."

"What was said?"

"No one believes that the investigations of the police bear on the button."

"You see, Florentin," Madame Cormier interrupted, smiling at her son.

But he shook his head.

"However, the opinion of all has a value," Phillis cried.

"Speak lower," Florentin said.

"It is thought that it is impossible for the police to find, among the two or three thousand tailors in Paris, all those who use the buttons marked A. P. And if they did find them, they could not designate all their customers to whom they have furnished these buttons. It is really looking for a needle in a bundle of hay."

"When one takes plenty of time, one finds a needle in a bundle of hay," Florentin said.

"You ask me what I heard, and I tell you. But I do not depend entirely on that. As I passed near the Rue Louis-le-Grand, I went to Doctor Sanie's; it being his office hour I hoped to find him."

"You told him the situation?" Florentin exclaimed.

In any other circumstances she would have replied frankly, explaining that she had perfect confidence in Sanie's; but when she saw her brother's agitation, she could not exasperate him by this avowal, above all, because

she could not at the same time give her reasons for her faith in him. She must reassure him before everything.

"No," she said, "but I spoke of Caffie to Doctor Sanie! without his being surprised. As he made the first deposition, was it not natural that my curiosity should wish to learn a little more than the newspapers tell?"

"Never mind, the act must appear strange."

"I think not. But, anyhow, the interest that we have to learn all made me overlook this; and I think, when I have told you the doctor's opinion, you will not regret my visit."

"And this opinion?" Madame Cormier asked.

"His opinion is, that there was no struggle between Caffie and the assassin, whereas the position of Caffie in the chair where he was attacked proves that he was surprised. Therefore, if there was no struggle, there was no button torn off, and all the scaffolding of the police falls to the ground."

Madame Cormier breathed a profound sigh of deliverance.

"You see," she said to her son.

"And the doctor's opinion is not the opinion of the first-comer, it is not even that of an ordinary physician. It is that of the physician who has certified to the death, and who, more than any one, has power, has authority, to say how it was given—by surprise, without struggle, without a button being pulled off."

"It is not Doctor Sanie! who directs the search of the police, or who inspires it," replied Florentin. "His opinion does not produce a criminal,

while the button can—at least for those who believe in the struggle; and between the two the police will not hesitate.

Already the newspapers laugh at them for not having discovered the assassin, who has rejoined all the others they have let escape. They must follow the track they have started on, and this track—"

He lowered his voice:

"It will lead them here."

"To do that they must pass by the Avenue de Clichy, and that seems unlikely."

"It is the possible that torments me, and not the unlikely, and you cannot but recognize that what I fear is possible. I was at Caffies the day of the crime. I lost there a button torn off by violence. This button picked up by the police proves, according to them, the criminality of the one who lost it. They will find that I am the one—"

"They will not find you."

"Let us admit that they do find me. How should I defend myself?"

"By proving that you were not in the Rue Sainte-Anne between five and six o'clock, since you were here."

"And what witnesses will prove this alibi? I have only one—mamma. What is the testimony of a mother worth in favor of her son in such circumstances?"

"You will have that of the doctor, affirming that there was no struggle, and consequently no button torn off."

"Affirming, but carrying no proof to support his theory; the opinion of one doctor, which the opinion of another doctor may refute and destroy. And then, to prove that there was no struggle; Doctor Saniel will say that Caffie was surprised. Who could surprise Caffie? To open Caffie's door when the clerk was away, it was necessary to ring first, and then to knock three times in a peculiar way. No stranger could know that, and who could know it better than I?"

Step by step Phillis defended the ground against her brother; but little by little the confidence which at first sustained her weakened. With Saniel she was brave. Between her brother and mother, in this room that had witnessed their fears, not daring to speak loud, she was downcast, and let herself be overcome by their anxieties.

"Truly," she said, "it seems as if we were guilty and not innocent."

"And while we are tormenting ourselves, the criminal, probably, in perfect safety laughs at the police investigations; he had not thought of this button; chance throws it in his way. Luck is for him, and against us—once more."

This was the complaint that was often on Florentin's lips. Although he had never been a gambler—and for sufficient reason—in his eyes everything was decided by luck. There are those who are born under a lucky star, others under an unlucky one. There are those who, in the battle of life, receive knocks without being discouraged, because they expect something the next day, as there are those who become discouraged because they expect nothing, and know by experience that tomorrow will be for them what today is, what yesterday was. And Florentin was one of these.

"Why did I not stay in America?" he said.

"Because you were too unhappy, my poor boy!" Madame Cormier said, whose maternal heart was moved by this cry.

"Am I happier here, or shall I be to-morrow? What does this to-morrow, full of uncertainty and dangers, hold for us?"

"Why do you insist that it has only dangers?" Phillis asked, in a conciliating and caressing tone.

"You always expect the good."

"At least I hope for it, and do not admit deliberately that it is impossible. I do not say that life is always rose-colored, but neither is it always black. I believe it is like the seasons. After winter, which is vile, I confess, come the spring, summer, and autumn."

"Well, if I had the money necessary for the voyage, I would go and pass the end of the winter in a country where it would be less disagreeable than here, and, above all, less dangerous for my constitution."

"You do not say that seriously, I hope?" cried Madame Cormier.

"On the contrary, very seriously."

"We are hardly reunited, and you think of a separation," she said, sadly.

"It is not of a separation that Florentin thinks," cried Phillis, "but of a flight."

"And why not?"

"Because only the guilty fly."

"It is exactly the contrary. The intelligent criminals stay, and, as generally they are resolute men, they know beforehand that they are able to face the danger; while the innocent, timid like myself, or the unlucky, lose their heads and fly, because they know beforehand, also, that if a danger threatens them, it will crush them. That is why I would return to America if I could pay my passage; at least I should feel easy there."

There was a moment of silence, during which each one seemed to have no thought but to finish dinner.

"Granting that this project is not likely," Florentin said, "I have another idea."

"Why do you have ideas?" Phillis asked.

"I wish you were in my place; we should see if you would not have them."

"I assure you that I am in your place, and that your trouble is mine, only it does not betray itself in the same manner. But what is your idea?"

"It is to find Valerius and tell him all."

"And who will answer to us for Valerius's discretion?" asked Madame Cormier. "Would it not be the greatest imprudence that you could commit? One cannot play with a secret of this importance."

"Valerius is an honest man."

"It is because he cannot work when political, or rather patriotic, affairs go wrong, that you say this."

"And why not? With a poor man who lives in a small way by his work, are not this care and pride in his country marks of an honorable heart?"

"I grant the honorable heart, but it is another reason for being prudent with him," Phillis said. "Precisely because he may be what you think, reserve is necessary. You tell him what is passed. If he accepts it and your innocence, it is well; he will not betray your secret voluntarily nor by stupidity. But he will not accept it; he will look beyond. He will suppose that you wish to deceive him, and he will suspect you. In that case, would he not go and tell all to the police commissioner of our quarter? As for me, I think it is a danger that it would be foolish to risk."

"And, according to you, what is to be done?"

"Nothing; that is, wait, since there are a thousand chances against one for our uneasiness, and we exaggerate those that may never be realized."

"Well, let us wait," he said. "Moreover, I like that; at the least, I have no responsibilities. What can happen will happen."

CHAPTER XIX

THE KNOCK AT THE DOOR

In order to put the button found at Caffies on the track of the assassin, it required that it should have come from a Parisian tailor, or, at least, a French one, and that the trousers had not been sold by a ready-made clothing-house, where the names of customers are not kept.

The task of the police was therefore difficult, as weak, also, were the chances of success. As Sanial had said, it was like looking for a needle in a bundle of hay, to go to each tailor in Paris.

But this was not their way of proceeding. In place of trying to find those who used these buttons, they looked for those who made them or sold them, and suddenly, without going farther than the directory, they found this manufacturer: "A. Pelinotte, manufacturer of metal buttons for trousers; trademark, A.P., crown and cock; Faubourg du Temple."

At first this manufacturer was not disposed to answer questions of the agent who went to see him; but when he began to understand that he might reap some advantage from the affair, like the good merchant that he was, young and active, he put his books and clerks at his disposition. His boast was, in effect, that his buttons, thanks to a brass bonnet around which the thread was rolled instead of passing through the holes, never cut the thread

and could not be broken. When they came off it was with a piece of the cloth. What better justification of his pretensions, what better advertisement than his button torn off with a piece of the trousers of the assassin? The affair would go before the assizes, and in all the newspapers there would be mention of the "A. P. buttons."

He was asked for his customers' names, and after a few days the search began, guided by a list so exact that useless steps were spared.

One morning a detective reached the Avenue de Clichy, and found the tailor Valerius in his shop, reading a newspaper. For it was not only when the country was in danger that Valerius had a passion for reading papers, but every morning and evening.

Nothing that was published in the papers escaped him, and at the first words of the agent he understood immediately about what he was to be questioned.

"It is concerning the affair in the Rue Sainte-Anne that you wish this information?" he said.

"Frankly, yes."

"Well, frankly also, I do not know if the secrets of the profession permit me to answer you."

The agent, who was by no means stupid, immediately understood the man's character, and instead of yielding to the desire to laugh, caused by this reply honestly made by this good-natured man, whose long, black, bushy beard and bald head accentuated his gravity, he yielded to the necessity of the occasion.

"That is a question to discuss."

"Then let us discuss it. A customer, confiding in my honesty and discretion, gives me an order to make a pair of trousers; he pays me as he agreed, without beating me down, and on the day he promised. We are loyal to each other. I give him a pair of good trousers, honestly made, and he pays me with good money. We are even. Have I the right afterward, by imprudent words, or otherwise, to furnish clews against him? The case is a delicate one."

"Do you place the interest of the individual above that of society?"

"When it is a question of a professional secret, yes. Where should we be if the lawyer, the notary, the doctor, the confessor, the tailor, could accept compromises on this point of doctrine? It would be anarchy, simply, and in the end it would be the interest of society that would suffer."

The agent, who had no time to lose, began to be impatient.

"I will tell you," he said, "that the tailor, however important his profession may be, is not placed exactly as the doctor or confessor. Have you not a book in which you write your customers' orders?"

"Certainly."

"So that if you persevere in a theory, pushing it to an extreme, I need only to go to the commissioner of your quarter, who, in virtue of the power of the law conferred upon him, will seize your books."

"That would be by violence, and my responsibility would be at an end."

"And in these books the judge would see to whom you have furnished trousers of this stuff. It would only remain then to discover in whose interest you have wished to escape the investigations of the law."

Saying this, he took from his pocket a small box, and taking out a piece of paper, he took from it a button to which adhered a piece of navy blue stuff.

Valerius, who was not in the least moved by the threat of the commissioner, for he was a man to brave martyrdom, looked at the box curiously. When the agent displayed the button, a movement of great surprise escaped him.

"You see," the agent exclaimed, "that you know this cloth!"

"Will you permit me to look at it?" Valerius asked.

"Willingly, but on condition that you do not touch it; it is precious."

Valerius took the box, and approaching the front of the shop, looked at the button and the piece of cloth.

"It is a button marked 'A.P.,' as you see, and we know that you use these buttons."

"I do not deny it; they are good buttons, and I give only good things to my customers."

Returning the box to the agent, he took a large book and began to turn over the leaves; pieces of cloth were pasted on the pages, and at the side were several lines of large handwriting. Arriving at a page where was a piece of blue cloth, he took the box and compared this piece with that of the button, examining it by daylight.

"Sir," he said, "I am going to tell you some very serious things."

"I am listening."

"We hold the assassin of the Rue Sainte-Anne, and it is I who will give you the means of discovering him."

"You have made trousers of this cloth?"

"I have made three pairs; but there is only one pair that can interest you, that of the assassin. I have just told you that the secrets of the profession prevented me from replying to your questions, but what I have just seen frees my conscience. As I explained to you, when I make a pair of good trousers for a customer who pays me in good money, I do not think I have the right to reveal the affairs of my client to any one in the world, even to the law."

"I understand," interrupted the agent, whose impatience increased.

"But this reserve on my part rests on reciprocity: to a good customer, a good tailor. If the customer is not good the reciprocity ceases, or, rather, it continues on another footing—that of war; if any one treats me badly, I return the same. The trousers to which this stuff belongs"—he showed the button—"I made for an individual whom I do not know, and who presented himself to me as an Alsatian, which I believed so much more easily, because he spoke with a strong foreign accent. These trousers—I need not tell you how careful I was with them. I am a patriot, sir. He agreed to pay for them on delivery. When they were delivered, the young apprentice who took them had the weakness to not insist upon the money. I went to him, but could obtain nothing; he would pay me the next day, and so on. Finally he disappeared, leaving no address."

"And this customer?"

"I will give you his name without the slightest hesitation. Fritzner, not an Alsatian as I believed, but a Prussian to a certainty, who surely struck the

blow; his disappearance the day after the crime is the proof of it."

"You say that you were not able to procure his address?"

"But you, who have other means at your disposal, can find him. He is twenty-seven or thirty years old, of middle height, blue eyes, a blond beard, and a complete blue suit of this cloth."

The agent wrote this description in his note-book as the tailor gave it to him.

"If he has not left Paris with these stolen thirty-five thousand francs, we shall find him, and the thanks will be yours," he said.

"I am happy to be able to do anything for you."

The agent was going, but he thought better of it.

"You said that you had made three suits of this cloth?"

"Yes, but there is only this Fritzner who counts. The two others are honest men, well known in the quarter, and they paid me honestly."

"Since they have no cause for alarm, you need have no scruples in naming them. It is not in the name of justice that I ask their names, but for myself. —They will look well in my report and will prove that I pushed my investigations thoroughly."

"One is a merchant in the Rue Truffant, and is called Monsieur Blanchet; the other is a young man just arrived from America, and his name is Monsieur Florentin Cormier."

"You say Florentin Cormier?" the agent asked, who remembered this name was that of one who had seen Caffie on the day of the crime. "Do you

know him?"

"Not exactly; it is the first time that I have made clothes for him. But I know his mother and sister, who have lived in the Rue des Moines five or six years at least; good, honest people, who work hard and have no debts."

The next morning about ten o'clock, a short time after Phillis's departure, Florentin, who was reading the newspaper in the dining-room, while his mother prepared the breakfast, heard stealthy steps that stopped on the landing before their door. His ear was too familiar with the ordinary sounds in the house to be deceived; there was in these steps a hesitation or a precaution which evidently betrayed a stranger, and with the few connections they had, a stranger was surely an enemy—the one whom he expected.

A ring of the doorbell, given by a firm hand, made him jump from his chair. He did not hesitate; slowly, and with an air of indifference, he opened the door.

He saw before him a man of about forty years, with a polite and shrewd face, dressed in a short coat, and wearing a flat hat.

"Monsieur Florentin Cormier?"

"I am he."

And he asked him to come in.

"The judge desires to see you at his office."

Madame Cormier came from the kitchen in time to hear these few words, and if Florentin had not motioned to her to be silent, she would have betrayed herself. The words on her lips were:

"You came to arrest my son!" They would have escaped her, but she crushed them back.

"And can you tell me for what affair the judge summons me?" Florentin asked, steadying his voice.

"For the Caffie affair."

"And at what hour should I present myself before the judge?"

"Immediately."

"But my son has not breakfasted!" Madame Cormier exclaimed. "At least, take something before going, my dear child."

"It is not worth while."

He made a sign to her that she should not insist. His throat was too tight to swallow a piece of bread, and it was important that he should not betray his emotion before this agent.

"I am ready," he said.

Going to his mother he embraced her, but lightly, without effusion, as if he were only to be absent a short time.

"By-and-by."

She was distracted; but, understanding that she would compromise her son if she yielded to her feelings, she controlled herself.

CHAPTER XX

A TIGHTENING CHAIN

As it was a part that he played, Florentin said to himself that he would play it to the best of his ability in entering the skin of the person he wished to be, and this part was that of a witness.

He had been Caffie's clerk; the justice would interrogate him about his old employer, and nothing would be more natural. It was that only, and nothing but that, which he could admit; consequently, he should interest himself in the police investigations, and have the curiosity to learn how they stood.

"Have you advanced far in the Caffie affair?" he asked the agent as they walked along.

"I do not know," the agent answered, who thought it prudent to be reserved. "I know nothing more than the newspapers tell."

On leaving his mother's house, Florentin observed on the other side of the street a man who appeared to be stationed there; at the end of several minutes, on turning a corner, he saw that this man followed them at a certain distance. Then it was not a simple appearance before the judge, for such precautions are not taken with a witness.

When they reached the Place Clichy, the agent asked him if he would take a carriage, but he declined. What good was it? It was a useless expense.

Then he saw the agent raise his hat, as if bowing to some one, but this bow was certainly not made to any one; and immediately, the man who had followed them approached. The raising of the hat was a signal. As from the deserted quarters of the Batignolles they entered the crowd, they feared he might try to escape. The character of the arrest became accentuated.

After the presentiments and fears that had tormented him during the last few days this did not astonish him, but since they took these precautions with him, all was not yet decided. He must, then, defend himself to the utmost. Distracted before the danger came, he felt less weak now that he was in it.

On arriving at the Palais de justice he was introduced immediately into the judge's office. But he did not attend to him at once; he was questioning a woman, and Florentin examined him by stealth. He saw a man of elegant and easy figure, still young, with nothing solemn or imposing about him, having more the air of a boulevardier or of a sportsman than of a magistrate.

While continuing his questioning, he also examined Florentin, but with a rapid glance, without persistence, carelessly, and simply because his eyes fell upon him. Before a table a clerk was writing, and near the door two policemen waited, with the weary, empty faces of men whose minds are elsewhere.

Soon the judge turned his head toward them.

"You may take away the accused."

Then, immediately addressing Florentin, he asked him his name, his Christian names, and his residence.

"You have been the clerk of the agent of affairs, Caffie. Why did you leave him?"

"Because my work was too heavy."

"You are afraid of work?"

"No, when it is not too hard; it was at his office, and left me no time to work for myself. I was obliged to reach his office at eight o'clock in the morning, breakfast there, and did not leave until seven to dine with my mother at the Batignolles. I had an hour and a half for that; at half-past eight I had to return, and stay until ten or half-past. In accepting this position I believed that I should be able to finish my education, interrupted by the death of my father, and to study law and become something better than a miserable clerk of a business man. It was impossible with Monsieur Caffie, so I left him, and this was the only reason why we separated."

"Where have you been since?"

This was a delicate question, and one that Florentin dreaded, for it might raise prejudices that nothing would destroy. However, he must reply, for what he would not tell himself others would reveal; an investigation on this point was too easy.

"With another business man, Monsieur Savoureux, Rue de la Victoire, where I was not obliged to work in the evening. I stayed there about three months, and then went to America."

"Why?"

"Because, when I began to study seriously, I found that my studies had been neglected too long to make it possible for me to take them up again. I had forgotten nearly all I had learned. I should, without doubt, fail in my examination, and I should only begin the law too late. I left France for America, where I hoped to find a good situation."

"How long since your return?"

"Three weeks."

"And you went to see Caffie?"

"Yes."

"What for?"

"To ask him for a recommendation to replace the one he gave me, which I had lost."

"It was the day of the crime?"

"Yes."

"At what time?"

"I reached his house about a quarter to three, and I left about half-past three."

"Did he give you the certificate for which you asked?"

"Yes; here it is."

And, taking it from his pocket, he presented it to the judge. It was a paper saying that, during the time that M. Florentin Cormier was his clerk, Caffie

was entirely satisfied with him; with his work, as with his accuracy and probity.

"And you did not return to him during the evening?" the judge asked.

"Why should I return? I had obtained what I desired."

"Well, did you or did you not return?"

"I did not return to him."

"Do you remember what you did on leaving Caffie's house?"

If Florentin had indulged in the smallest illusion about his appearance before the judge, the manner of conducting the interview would have destroyed it. It was not a witness who was being questioned, it was a culprit. He had not to enlighten the justice, he had to defend himself.

"Perfectly," he said. "It is not so long ago. On leaving the Rue Sainte-Anne, as I had nothing to do, I went down to the quays, and looked at the old books from the Pont Royale to the Institute; but at this moment a heavy shower came on, and I returned to the Batignolles, where I remained with my mother."

"What time was it when you reached your mother's house?"

"A few minutes after five."

"Can you not say exactly?"

"About a quarter past five, a few minutes more or less."

"And you did not go out again?"

"No."

"Did any one call at your mother's after you arrived there?"

"No one. My sister came in at seven o'clock, as usual, when she returned from her lesson."

"Before you went up to your rooms did you speak with any of the other lodgers?"

"No."

There was a pause, and Florentin felt the judge's eyes fixed on him with an aggravating persistency. It seemed as if this look, which enveloped him from head to foot, wished to penetrate his inmost thoughts.

"Another thing," said the judge. "You did not lose a trousers' button while you were with Caffie?"

Florentin expected this question, and for some time he had considered what answer he should make to it. To deny was impossible. It would be easy to convict him of a fib, for the fact of the question being asked was sufficient to say there was proof that the button was his. He must, then, confess the truth, grave as it might be.

"Yes," he said, "and this is how—"

He related in detail the story of the bundle of papers placed on the highest shelf of the cases, his slipping on the ladder, and the loss of the button, which he did not discover until he was in the street.

The judge opened a drawer and took from it a small box, from which he took a button that he handed to Florentin.

"Is that it?" he asked.

Florentin looked at it.

"It is difficult for me to answer," he said, finally; "one button resembles another."

"Not always."

"In that case, it would be necessary for me to have observed the form of the one I lost, and I gave no attention to it. It seems to me that no one knows exactly how, or of what, the buttons are made that they wear."

The judge examined him anew.

"But are not the trousers that you wear to-day the same from which this button was torn?"

"It is the pair I wore the day I called on Monsieur Caffie."

"Then it is quite easy to compare the button that I show you with those on your trousers, and your answer becomes easy."

It was impossible to escape this verification.

"Unbutton your vest," said the judge, "and make your comparison with care—with all the care that you think wise. The question has some importance."

Florentin felt it only too much, the importance of this question, but as it was set before him, he could not but answer frankly.

He unbuttoned his waistcoat, and compared the button with his.

"I believe that it is really the button that I lost," he said.

Although he endeavored not to betray his anguish, he felt that his voice trembled, and that it had a hoarse sound. Then he wished to explain this emotion.

"This is a truly terrible position for me," he said.

The judge did not reply.

"But because I lost a button at Monsieur Caffie's, it does not follow that it was torn off in a struggle."

"You have your theory, and you will make the most of it, but this is not the place. I have only one more question to ask: By what button have you replaced the one you lost?"

"By the first one I came across."

"Who sewed it on?"

"I did."

"Are you in the habit of sewing on your buttons yourself?"

Although the judge did not press this question by his tone, nor by the form in which he made it, Florentin saw the strength of the accusation that his reply would make against him.

"Sometimes," he said.

"And yet, on returning home, you found your mother, you told me. Was there any reason why she could not sew this button on for you?"

"I did not ask her to do it."

"But when she saw you sewing it, did she not take the needle from your hands?"

"She did not see me."

"Why?"

"She was occupied preparing our dinner."

"That is sufficient."

"I was in the entry of our apartment, where I have slept since my return; my mother was in the kitchen."

"Is there no communication between the kitchen and the entry?"

"The door was closed."

A flood of words rushed to his lips, to protest against the conclusions which seemed to follow these answers, but he kept them back. He saw himself caught in a net, and all his efforts to free himself only bound him more strongly.

As he was asked no more questions it seemed to him best to say nothing, and he was silent a long time, of the duration of which he was only vaguely conscious.

The judge talked in a low tone, the recorder wrote rapidly, and he heard only a monotonous murmur that interrupted the scratching of a pen on the paper.

"Your testimony will now be read to you," the judge said.

He wished to give all his attention to this reading, but he soon lost the thread of it. The impression it made upon him, however, was that it faithfully reproduced all that he had said, and he signed it.

"Now," said the judge, "my duty obliges me, in presence of the charges which emanate from your testimony, to deliver against you a 'manda depot'."

Florentin received this blow without flinching.

"I know," he said, "that all the protestations I might make would have no effect at this moment; I therefore spare you them. But I have a favor to ask of you; it is to permit me to write to my mother and sister the news of my arrest—they love me tenderly. Oh, you shall read my letter!"

"You may, sir."

CHAPTER XXI

"REGARDING THE CAFFIE AFFAIR"

After the departure of her son and the detective, Madame Cormier was prostrated. Her son! Her Florentin! The poor child! And she was sunk in despair.

Had they not suffered enough? Was this new proof necessary? Why had their life been so unmercifully cruel? Why had not Dr. Saniei let her die? At least she would not have seen this last catastrophe, this disgrace; her son accused of assassination, in prison, at the assizes!

Heretofore when she had yielded to her feelings and bewailed their sad lot, Phillis was at hand to cheer and caress her; but now she was alone in her deserted apartment, no one to hear her, see her, nor scold. Why should she not abandon herself to tears? She wept and trembled, but the moment arrived when, after having reached the extreme of despair, which showed her her son condemned as an assassin, and executed, she stopped and asked herself if she had not gone too far.

He would return; certainly she might expect him. And she waited for him without breakfasting; he would not like to sit down to the table all alone, the poor child.

Besides, she was too profoundly overcome to eat. She arranged the fire with care, so that the haricot of mutton would keep warm, for it was his favorite dish.

Minutes and hours passed and he did not return. Her anguish came back; a witness would not be retained so long by the judge. Had they arrested him? Then what would become of him?

She fell into a state of tears and despair, and longed for Phillis. Fortunately she would not be late to-day. Finally a quick, light step was heard on the landing, and as soon as she could, Madame Cormier went to open the door, and was stunned on seeing the agitated face of her daughter. Evidently Phillis was surprised by the sudden opening of the door.

"You know all, then?" Madame Cormier cried.

Phillis put her arms about her, and drew her into the dining-room, where she made her sit down.

"Becalm," she said. "They will not keep him."

"You know some way?"

"We will find a way. I promise you that they will not keep him."

"You are sure?"

"I promise you."

"You give me life. But how did you know?"

"He wrote to me. The concierge gave me his letter, which had just come."

"What does he say?"

Madame Cormier took the letter that Phillis handed her, but the paper shook so violently in her trembling hand that she could not read.

"Read it to me."

Phillis took it and read

"DEAR LITTLE SISTER: After listening to my story, the judge retains me. Soften for mamma the pain of this blow. Make her understand that they will soon acknowledge the falseness of this accusation; and, on your part, try to make this falseness evident, while on mine, I will work to prove my innocence.

"Embrace poor mamma for me, and find in your tenderness, strength, and love, some consolation for her; mine will be to think that you are near her, dear little beloved sister.

"FLORENTIN."

"And it is this honest boy that they accuse of assassination!" cried Madame Cormier, beginning to weep.

It required several minutes for Phillis to quiet her a little.

"We must think of him, mamma; we must not give up."

"You are going to do something, are you not, my little Phillis?"

"I am going to find Doctor Sanial."

"He is a doctor, not a lawyer."

"It is exactly as a doctor that he can save Florentin. He knows that Caffie was killed without a struggle between him and the assassin; consequently

without the wrenching off of a button. He will say it and prove it to the judge, and Florentin's innocence is evident. I am going to see him."

"I beg of you, do not leave me alone too long."

"I will come back immediately."

Phillis ran from the Batignolles to the Rue Louis-le-Grand. In answer to her ring, Joseph, who had returned to his place in the anteroom, opened the door, and as Sanie! was alone, she went immediately to his office.

"What is the matter?" he asked, on seeing her agitation.

"My brother is arrested."

"Ah! The poor boy!"

What he had said to her on explaining that this arrest could not take place was sincere; he believed it, and he more than believed it, he wished it. When he decided to kill Caffie he had not thought that the law would ever discover a criminal; it would be a crime that would remain unpunished, as so many were, and no one would be disturbed. But now the law had found and arrested one who was the brother of the woman he loved.

"How was he arrested?" he asked, as much for the sake of knowing as to recover himself.

She told what she knew, and read Florentin's letter.

"He is a good boy, your brother," he said, as if talking to himself.

"You will save him?"

"How can I?"

This cry escaped him without her understanding its weight; without her divining the expression of anxious curiosity in his glance.

"To whom shall I address myself, if not to you? Are you not everything to me? My support, my guide, my counsel, my God!"

She explained what she wished him to do. Once more an exclamation escaped Saniel.

"You wish me to go to the judge—me?"

"Who, better than you, can explain how things happened?"

Saniel, who had recovered from his first feeling of surprise, did not flinch. Evidently she spoke with entire honesty, suspecting nothing, and it would be folly to look for more than she said.

"But I cannot present myself before a judge in such away," he said.
"It is he who sends for those he wants to see."

"Why can you not go to his court, since you know things which will throw light upon it?"

"Is it truly easy to go before this court? In going before it, I make myself the defender of your brother."

"That is exactly what I ask of you."

"And in presenting myself as his defender, I take away the weight of my deposition, which would have more authority if it were that of a simple witness."

"But when will you be asked for this deposition? Think of Florentin's sufferings during this time, of mamma's, and of mine. He may lose his

head; he may kill himself. His spirit is not strong, nor is mamma's. How will they bear all that the newspapers will publish?"

Saniel hesitated a moment.

"Well, I will go," he said. "Not this evening, it is too late, but tomorrow."

"Oh, dear Victor!" she exclaimed, pressing him in her arms, "I knew that you would save him. We will owe you his life, as we owe you mamma's, as I owe you happiness. Am I not right to say you are my God?"

After she was gone he had a moment of repentance in which he regretted this weakness; for it was a weakness, a stupid sentimentalism, unworthy of a sensible man, who should not permit himself to be thus touched and involved. Why should he go and invite danger when he could be quiet, without any one giving him a thought? Was it not folly? The law wanted a criminal. Public curiosity demanded one. Why take away the one that they had? If he succeeded, would they not look for another? It was imprudence, and, to use the true word, madness. Now that he was no longer under the influence of Phillis's beautiful, tearful eyes, he would not commit this imprudence. All the evening this idea strengthened, and when he went to bed his resolution was taken. He would not go to the judge.

But on awakening, he was surprised to find that this resolution of the evening was not that of the morning, and that this dual personality, which had already struck him, asserted itself anew. It was at night that he resolved to kill Caffie, and he committed the deed in the evening. It was in the morning that he had abandoned the idea, as it was in the morning that he revoked the decision made the previous evening not to go to the rescue of this poor boy. Of what then, was the will of man made, undulating like the sea, and variable as the wind, that he had the folly to believe his was firm?

At noon he went to the Palais de justice and sent in his card to the judge, on which he wrote these words: "Regarding the Caffie affair."

He was received almost immediately, and briefly explained how, according to his opinion, Caffie was killed quickly and suddenly by a firm and skilful hand, that of a killer by profession.

"That is the conclusion of your report," the judge said.

"What I could not point out in my report, as I did not know of the finding of the button and the opinion it has led to, is that there was no struggle between the assassin and the victim, as is generally supposed."

And medically he demonstrated how this struggle was impossible.

The judge listened attentively, without a word, without interruption.

"Do you know this young man?" he asked.

"I have seen him only once; but I know his mother, who was my patient, and it is at her instigation that I decided to make this explanation to you."

"Without doubt, it has its value, but I must tell you that it tends in no way to destroy our hypothesis."

"But if it has no foundation?"

"I must tell you that you are negative, doctor, and not suggestive. We have a criminal and you have not. Do you see one?"

Saniel thought that the judge looked at him with a disagreeable persistency.

"No," he said, sharply.

Then rising, he said, more calmly:

"That is not in my line."

He had nothing to do but to retire, which he did; and on passing through the vestibule he said to himself that the magistrate was right. He believed that he held a criminal. Why should he let him go?

As for him, he had done what he could.

CHAPTER XXII

NOUGAREDE'S BRIDE

Saniel passed the first proofs of his two 'concours' so brilliantly that the results of either were not doubtful. In delivering his thesis for the 'agregation', he commanded the admiration of his audience; by turns aggressive, severe, ironical, eloquent, he reduced his adversary to such an extremity that, overwhelmed, he was not able to reply. In his lecture at the hospital, his eloquence and his clear demonstration convinced the judges who were opposed to him that he was in the right.

What could Caffie's death weigh, placed in the balance with these results? So little that it counted for nothing, and would have held no place in his thoughts if it had not been mixed in his mind with the accusation that would send Florentin to the assizes.

Cleared of this fact, the death of the old man rarely crossed his mind. He had other things in his head, truly, than this memory which brought neither regret nor remorse; and it was not at this moment, when he touched the end at which he aimed, that he would embarrass himself, or sadden his triumph, with Caffie.

A little before the expiration of the two months, during which time the poste restante retained the letters containing the thirty thousand francs, he

called for them, and readdressed and mailed them to other post-offices.

What did he want of this money, which was, in reality, a nuisance? His habits remained the same, except that he no longer struggled with his creditors, and paid cash for everything. He had no desire to make any change in his former mode of living; his ambition was otherwise and higher than in the small satisfactions, very small for him, that money gives.

Days passed without a thought of Caffie, except in connection with Florentin. But Florentin, and above all, Phillis, reminded him that the comfort he enjoyed he owed to Caffie's death, and he was troubled accordingly.

He did not believe that the investigations of the law would reach him now; everything conspired to confirm him in his scrutiny. That which he arranged so laboriously had succeeded according to his wish, and the only imprudence that he had committed, in a moment of aberration, seemed not to have been observed; no one had noticed his presence in the cafe opposite Caffie's house, and no one was astonished at his pertinacity in remaining there at an hour so unusual.

But it was not enough that he was safe; he must prevent Florentin from being unjustly condemned for a crime of which he was innocent. It was a great deal that he should be imprisoned, that his sister should be in despair, and his mother ill from chagrin; but if he should be sent to the scaffold or to the galleys, it would be too much. In itself the death of Caffie was a small thing; it became atrocious if it led to such an ending.

He did not wish this to happen, and he would do everything not only to prevent the condemnation, but to shorten the imprisonment.

It was this sentiment that he obeyed in going to see the judge; but the manner in which he was received, showing him that the law was not disposed to let its hypothesis be changed by a simple medical demonstration, threw him into a state of uneasiness and perplexity.

Without doubt, any one else in his place would have let things take their course, and since the law had a criminal with which it contented itself, would have done nothing to release him. While it followed its hypothesis to prove the criminality of the one it held, it would not look elsewhere; when it had condemned him, all would be finished; the Caffie affair would be buried, as Caffie himself was buried; silence and oblivion would give him security. The crime punished, the conscience of the public satisfied, it would ask for no more, not even to know if the debt was paid by the one who really owed it; it was paid, and that was sufficient. But he was not "any one else," and if he found the death of this old scamp legitimate, it was on the condition that Florentin did not pay for it, from whom he had not profited.

Florentin must be released as soon as possible, and it was his duty to interest himself in his behalf—his imperative duty not only toward Phillis, but toward himself.

He told Phillis that until Florentin came before the jury, he could do nothing, or almost nothing. When the time came, he would assert his authority, and speaking in the name of science, he would prove to the jury that the story of the button was an invention of the police, who were pushed to extremes, and would not bear examination; but until then the poor boy remained at Mazas, and however assured one might be at this moment of an acquittal, an immediate 'ordonnance de non-lieu' was of more value, if it could be obtained.

For this the intervention and direction of a doctor were of little use; it required that of an advocate.

Whom should he have? Phillis would have liked to apply to the most illustrious, to him who, by his talent, authority, and success, would win all his cases. But Sanie! explained to her that workers of miracles were probably as difficult to find at the bar as in the medical profession, and that, if they did exist, they would expect a large fee. To tell the truth, he would have willingly given the thirty thousand francs in the 'poste restante', or a large part of this sum, to give Florentin his liberty; but it would be imprudent to take out the bills at this moment, and he could not declare that he had thirty thousand francs, or even ten thousand. He decided with Phillis to consult Brigard.

On a Wednesday he went to the parlor in the Rue Vaugirard, where he had not been since his experiment with Gladys. As usual, he was received affectionately by Crozat, who scolded him for coming so rarely, and as usual also, in order not to disturb the discussion that was going on, he remained standing near the door.

This evening the theme of the discourse was a phrase of Chateaubriand's: "The tiger kills and sleeps; man kills and is sleepless." On listening to the discussion, Sanie! said to himself that it was truly a pity not to be able to reply to all this rhetoric by a simple fact of personal experience. He had never slept so well, so tranquilly, as since Caffie's death, which relieved him from all the cares that in these last months had tormented and broken his sleep so much.

At the end, Brigard concluded the discussion on saying that nothing better proved the power of the human conscience than this difference between man and beast.

When they had all gone but Brigard, and Saniel was alone with him and Crozat, he stated his desire.

"But is it the Caffie affair?"

"Exactly."

And he explained in detail the interest he felt in Florentin, the son of one of his patients, and also the situation of this patient.

Brigard strongly recommended Nougarede, and described his recent successes before a jury. Crozat concurred with Brigard, and advised Saniel to see Nougarede the day after to-morrow.

"In the morning, because after the Palais, Nougarede will be at his wedding, which, as you know, prevents him from coming here this evening."

"What! Nougarede married?" exclaimed Saniel, surprised that the favorite disciple gave this lie to the doctrine and examples of his master.

"My God, yes! We must not be too hard on him.

He submits to the fate of a special environment. Without our knowledge, Nougarede, we may say it now, and ought to say it, was the happy lover of a charming young person, the daughter of one of our most distinguished actresses, who was brought up in a fashionable convent. You see the situation. The result of this liaison was a child, a delicious little boy. It seemed quite natural that they should live 'en union libre', since they loved each other, and not weaken by legalities the strength of those that attached them to this child. But the mother is an actress, as I have told you, and wished her daughter to receive all the sacraments that the law and the church can confer. She managed so well that poor Nougarede yielded. He

goes to the mayor, to the church; he legitimizes the child, and he even accepts a dot of two hundred thousand francs. I pity him, the unfortunate man! But I confess that I have the weakness to not condemn him as he would deserve if he married in any other way."

Saniel was a little surprised at these points of resemblance with the charming young person that Caffie had proposed to him. At the least, it was curious; but if it were the same woman, he was not vexed to see that Nougarede had been less difficult than himself.

CHAPTER XXIII

STUNNING NEWS

On going to see Nougarede, Sanie! vaguely fancied the lawyer would tell him that an acquittal was certain if Florentin passed to the assizes, and even that an 'ordonnance de non-lieu' was probable. But his hope was not realized.

"The adventure of the button for you or me would not have the same gravity as for this boy; we have no antecedents on which presumptions might be established, but he has. The forty-five francs which constitute an embezzlement for a salaried man will be, certainly, a starting-point for the accusation; one commences by a weakness and finishes by a crime. Do you not hear the advocate-general? He will begin by presenting the portrait of the honest, laborious, exact, scrupulous clerk, content with a little, and getting satisfaction from his duties accomplished; then, in opposition, he will pass to the clerk of to-day, as irregular in his work as in his conduct, full of desires, in a hurry to enjoy, discontented with everything and everybody, with others as with himself. And he will go on to speak of the embezzlement of the forty-five francs as the beginning of the crimes that led to the assassination. You may be sure if the affair goes to the assizes that you will hear these words and more, and I assure you that it will be difficult for us to destroy the impression that he will produce on the jury. But I hope we shall succeed."

He had to give up the idea of obtaining the 'ordonnance de non-lieu', and to tell himself that the 'affaire' would come before the assizes; but it does not follow that one is condemned for what one is accused of, and Saniel persisted in believing that Florentin would not be. Assuredly, the prison was hard for the poor boy, and the trial before the jury, with all the ignominy that necessarily accompanies it, would be harder yet. But, after all, it would all disappear in the joy of acquittal; when that time came, there would be found, surely, some ingenious idea, sympathy, effective support, to pay him for all that he would have suffered. Certainly, things would come to pass thus, and the acquittal would be carried with a high hand.

He said this to himself again and again, and from the day when he put the affair in Nougarede's hands, he often went to see him, to hear him repeat it.

"He cannot be condemned; can he?"

"One may always be condemned, even when one is innocent; as one may die at any time, you know that, even with excellent health."

In one of these visits he met Madame Nougarede, who had then been several days married, and on recognizing in her the young virgin with a child, of whom Caffie showed him the portrait, he was strengthened in his idea that conscience, such as it was understood, was decidedly a strange weighing-machine, which might be made to say whatever one chose. Of what good were these hypocrisies, and whom did they deceive?

Although he had told Phillis repeatedly that an acquittal was certain, and that he had promised her he would do all he could for Florentin—which he really did—she did not give entirely into his hands, or into Nougarede's, the task of defending her brother, but worked with them in his defence.

Nougarede believed that the delay in bringing the affair before the assizes was caused by the attempts to learn if, during his residence in America, Florentin had not worked in some large meat-shop or sheepfold, where he would have learned to use a butcher knife, which was the chief point for the accusation. Phillis wrote to the various towns where Florentin had lived, and to tell the truth, he had worked at La Plata for six months as accountant in a large sheepfold, but never slaughtered the sheep.

When she received a letter, she carried it immediately to Saniei, and then to Nougarede; and, at the same time, on all sides, in Paris, among those who had held relations with her brother, she sought for testimony that should prove to the jury that he could not be the man that his accusers believed him. It was thus that, all alone, without other means of action than those which she found in her sisterly tenderness and bravery, she organized an investigation parallel to that of the law, which, on the day of judgment, would carry a certain weight, it seemed, with the conviction of the jury, showing them what had been the true life of this irregular and debauched man, capable of anything to glut his appetite and satisfy his desires.

Each time that she obtained a favorable deposition, she ran to Saniei to tell him, and then together they repeated that a conviction was impossible.

"You are sure, are you not?"

"Have I not always told you so?"

He had also said that Florentin could not be arrested, basing the accusation on the torn button, and he had said that certainly an 'ordonnance de non-lieu' would be given by the judge; but they wished to remember neither the one nor the other.

Things had reached this state, when one Saturday evening Phillis arrived at Saniel's, radiant.

As soon as the door opened she exclaimed:

"He is saved!"

"An ordonnance de non-lieu?"

"No; but now it is of little importance. We can go to the assizes."

She breathed a sigh which showed how great were her fears, in spite of the confidence she expressed when she repeated that conviction was impossible.

He left his desk, and going toward her, took her in his arms, and made her sit down beside him on the divan.

"You will see that I do not let myself be carried away by an illusion, and that, as I tell you, he is saved, really saved. You know that an illustrated paper has published his portrait?"

"I do not read illustrated papers."

"You could have seen them at the kiosks where they are displayed. It is there that I saw them yesterday morning when I went out, and I was petrified, red with shame, distracted, not knowing where to hide myself. 'Florentin Cormier, the assassin of the Rue Sainte-Anne.' Is it not infamous that an innocent person should be thus dishonored? This was what I said to myself. Where did the paper get the photograph? They came to ask us for one, but you can imagine how I treated them, not knowing how anything good for us would result from such a disgrace."

"And what is the result?"

"The proof that it is not Florentin who was with Caffie at the moment when the assassination took place. All day yesterday and all this morning I was filled with the feeling of disgrace that followed me, when at three o'clock I received this little note from the concierge of the Rue Sainte-Anne."

She took from her pocket a piece of paper folded in the form of a letter, which she handed to Saniel.

"MADEMOISELLE: If you will pass through the Rue Sainte-Anne, I have something to tell you that will give you a great deal of pleasure, I believe.

"I am your servant,

"WIDOW ANAIS BOUCHU."

"You know the lame old concierge has never been willing to admit that my brother could be guilty. Florentin was polite and kind to her during his stay with Caffie, and she is grateful. Very often she has said to me that she is certain the guilty one would be found, and that when it was announced I must tell her. Instead of my telling her the good news, she has written to me. You may be sure I hurried to the Rue Sainte-Anne, expecting to hear something favorable, but we have a proof. When I arrived, the old woman took both of my hands, and told me that she would conduct me immediately to a lady who saw Caffie's assassin."

"Saw him!" exclaimed Saniel, struck by a blow that shook him from head to foot.

"She saw him perfectly, as I tell you. She added that this lady was the proprietor of the house, and that she lived in the second wing of the building, on the second story on the court, just opposite to Caffie's office. This lady, who is called Madame Dammauville, widow of a lawyer, is afflicted with paralysis, and I believe has not left her room for a year. The concierge explained this to me while crossing the court and mounting the stairs, but would say no more."

If Phillis had been able to observe Saniel, she would have seen him pale to such a degree that his lips were as white as his cheeks; but she was completely absorbed in what she was saying.

"A servant conducted us to Madame Dammauville, whom I found in a small bed near a window, and the concierge told her who I was. She received me kindly, and after having made me sit down in front of her, she told me that hearing from her concierge that I was exerting myself in my brother's behalf, she had something to tell me which would demonstrate that Caffie's assassin was not the man whom the law had arrested and detained. The evening of the assassination she was in this same room, lying on this same bed, before this same window, and after having read all day, she reflected and dreamed about her book, while listlessly watching the coming of twilight in the court, that already obscured everything in its shadow. Mechanically she had fixed her eyes on the window of Caffie's office opposite. Suddenly she saw a tall man, whom she took for an upholsterer, approach the window, and try to draw the curtains. Then Caffie rose, and taking the lamp, he came forward in such a way that the light fell full on the face of this upholsterer. You understand, do you not?"

"Yes," murmured Saniel.

"She saw him then plainly enough to remember him, and not to confound him with another. Tall, with long hair, a curled blond beard, and dressed like

a gentleman, not like a poor man. The curtains were drawn. It was fifteen or twenty minutes after five. And it was at this same moment that Caffie was butchered by this false upholsterer, who evidently had only drawn the curtains so that he might kill Caffie in security, and not imagining that some one should see him doing a deed that denounced him as the assassin as surely as if he had been surprised with the knife in his hand. On reading the description of Florentin in the newspapers when he was arrested, Madame Dammauville believed the criminal was found—a tall man, with long hair and curled beard. There are some points of resemblance, but in the portrait published in the illustrated paper that she received, she did not recognize the man who drew the curtains, and she is certain that the judge is deceived. You see that Florentin is saved!"

ETEXT EDITOR'S BOOKMARKS:

For the rest of his life he would be the prisoner of his crime
In his eyes everything was decided by luck
Looking for a needle in a bundle of hay
Neither so simple nor so easy as they at first appeared

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VOLUME 2 ***

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